बिड संख्या/Bid Number: GEM/2025/B/6979425

दिनांक /Dated: 09-12-2025

बिड दस्तावेज़ / Bid Document

बिड विवरण/Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	30-12-2025 17:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	30-12-2025 17:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	120 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Ministry Of Electronics And Information Technology
विभाग का नाम/Department Name	Department Of Electronics And Information Technology
संगठन का नाम/Organisation Name	Centre For Development Of Advanced Computing (c-dac)
कार्यालय का नाम/Office Name	West
कुल मात्रा/Total Quantity	5
वस्तु श्रेणी /Item Category	PFS Based storage , Tape Library , Backup Software and Servers , ITC Charges , Additional Items
GeMARPTS में खोजी गई स्ट्रिंग्स / Searched Strings used in GeMARPTS	SIITC OF HPC-AI High Performance Storage and Archival Solution
GeMARPTS में खोजा गया परिणाम / Searched Result generated in GeMARPTS	Lead Acid Storage Batteries For Motor Vehicles with Light Weight and High Cranking Performance (V2) Conforming to IS 14257, Assistive Tech
अधिसूचना के लिए चयनित प्रासंगिक श्रेणियाँ / Relevant Categories selected for notification	• Storage System (V2) • Tape Library (V2) • Backup And Replication Software Backup or Archival Software (V2)
बीओक्यू शीर्षक /BOQ Title	SIITC OF HPC AI High Performance Storage and Archival Solution
बिडर का न्यूनतम औसत वार्षिक टर्नओवर (3 वर्षों का) /Minimum Average Annual Turnover of the bidder (For 3 Years)	1500 Lakh (s)
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है/MSE Exemption for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है /Startup Exemption for Years of Experience and Turnover	No

बिड विवरण/Bid Details	
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Bidder Turnover,Certificate (Requested in ATC),OEM Authorization Certificate,Additional Doc 1 (Requested in ATC),Additional Doc 2 (Requested in ATC),Compliance of BoQ specification and supporting document *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेज़ों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	Yes (Documents submitted as part of a clarification or representation during the tender/bid process will also be displayed to other participated bidders after log in)
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	1
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	3
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	1
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	Yes
रिवर्स नीलामी योग्यता नियम/RA Qualification Rule	50% Lowest Priced Technically Qualified Bidders
बिड का प्रकार/Type of Bid	Two Packet Bid
प्राथमिक उत्पाद श्रेणी/Primary product category	PFS Based storage
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	2 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
वित्तीय दस्तावेज की आवश्यकता है / Financial Document Required	Yes
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

एडवाईजरी बैंक/Advisory Bank	Bank of India

ईएमडी राशि/EMD Amount	8000000

ईपीबीजी विवरण /ePBG Detail

एडवाइजरी बैंक/Advisory Bank	Bank of India
ईपीबीजी प्रतिशत (%)/ePBG Percentage(%)	5.00
ईपीबीजी की आवश्यक अवधि (माह) /Duration of ePBG required (Months).	41

(a). जेम की शर्तों के अनुसार ईएमडी छूट के इच्छुक बिडर को संबंधित केटेगरी के लिए बिड के साथ वैध समर्थित दस्तावेज़ प्रस्तुत करने है। एमएसई केटेगरी के अंतर्गत केवल वस्तुओं के लिए विनिर्माता तथा सेवाओं के लिए सेवा प्रदाता ईएमडी से छूट के पात्र हैं। व्यापारियों को इस नीति के दायरे से बाहर रखा गया है।/EMD EXEMPTION: The bidder seeking EMD exemption, must submit the valid supporting document for the relevant category as per GeM GTC with the bid. Under MSE category, only manufacturers for goods and Service Providers for Services are eligible for exemption from EMD. Traders are excluded from the purview of this Policy.

(b).ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance securityshould be in favour of Beneficiary, wherever it is applicable.

लाभार्थी /Beneficiary :

Centre Head
West, Department of Electronics and Information Technology, Centre for Development of Advanced Computing (C-DAC), Ministry of Electronics and Information Technology
(C-dac)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई खरीद वरीयता / MII Purchase Preference

एमआईआई खरीद वरीयता / MII Purchase Preference	Yes
मेक इन इंडिया विक्रेताओं को खरीद में प्राथमिकता, यदि उनका मूल्य L1+X% तक की सीमा में है / Purchase Preference to MII sellers availabele upto price within L1+X%	20
मेक इन इंडिया खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Maximum Percentage of Bid quantity for MII purchase preference	50
सार्वजनिक खरीद (मेक-इन-इंडिया को प्राथमिकता) आदेश 2017 के अनुसार केवल क्लास 1/क्लास 2 के स्थानीय आपूर्तिकर्ताओं को ही भागीदारी की अनुमति है दिनांक 16.09.2020 (समय-समय पर संशोधित एवं लागू) / Allow participation only from Class 1/Class 2 local suppliers as per the Public procurement(Preference to Make-in-india) order 2017 date 16.09.2020(as amended and applicable time to time)	Yes, in compliance with the MII ORDER : DPIIT Order(as amended and applicable time to time)

एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं को खरीद में प्राथमिकता, यदि उनका मूल्य L1+X% तक की सीमा में हो / Purchase Preference to MSE OEMs available upto price within L1+X%	15
सूक्ष्म और लघु उद्यम को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Maximum Percentage of Bid quantity for MSE purchase preference	25

1. The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated above in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3-year-old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.
2. Preference to Make In India products (For bids < 200 Crore):Preference shall be given to Class 1 local supplier as defined in public procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued by concerned Nodal Ministry for specific Goods/Products. The minimum local content to qualify as a Class 1 local supplier is denoted in the bid document. If the bidder wants to avail the Purchase preference, the bidder must upload a certificate from the OEM regarding the percentage of the local content and the details of locations at which the local value addition is made along with their bid, failing which no purchase preference shall be granted. In case the bid value is more than Rs 10 Crore, the declaration relating to percentage of local content shall be certified by the statutory auditor or cost auditor, if the OEM is a company and by a practicing cost accountant or a chartered accountant for OEMs other than companies as per the Public Procurement (preference to Make-in -India) order 2017 dated 04.06.2020. Only Class-I and Class-II Local suppliers as per MII order dated 4.6.2020 will be eligible to bid. Non - Local suppliers as per MII order dated 04.06.2020 are not eligible to participate. However, eligible micro and small enterprises will be allowed to participate .The buyers are advised to refer the OM No.F.1/4/2021-PPD dated 18.05.2023.
OM_No.1_4_2021_PPD_dated_18.05.2023 for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017.

3. Purchase preference will be given to MSEs having valid Udyam Registration and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service and Buyer will decide eligibility for purchase preference based on documentary evidence submitted, while evaluating the bid. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 25% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the OM No. F.1/4/2021-PPD dated 18.05.2023 OM_No.1_4_2021_PPD_dated_18.05.2023 for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.
4. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and

based on competitive prices received in Bid / RA process.

5. Reverse Auction would be conducted amongst first 50% of the technically qualified bidders arranged in the order of prices from lowest to highest. Number of sellers eligible for participating in RA would be rounded off to next higher integer value if number of technically qualified bidders is odd (e.g. if 7 bids are technically qualified, then RA will be conducted amongst L-1 to L-4). In case number of technically qualified bidders are 2 or 3, RA will be between all without any elimination. If Buyer has chosen to split the bid amongst N sellers, then minimum N sellers would be taken to RA round. In case Primary products of only one OEM are left in contention for participation in RA based on lowest 50% bidders qualifying for RA, the number of sellers qualifying for RA would be increased to get at least products of one more OEM (directly participated or through its reseller) if available. Further, if bid(s) of any seller(s) eligible for MSE preference is / are coming within price band of 15% of Non MSE L-1 or if bid of any seller(s) eligible for Make in India preference is / are coming within price band of 20% of non MII L-1, then such MSE / Make in India seller shall also be allowed to participate in the RA process.

Pre Bid Detail(s)

मूल्य भिन्नता खंड दस्तावेज़/Pre-Bid Date and Time	**प्री-बिड स्थान/Pre-Bid Venue**
15-12-2025 11:00:00	Online pre-bid meeting to be held. Meeting link is as follows: Join from the meeting link https://cdac-mmg.webex.com/cdac-mmg/j.php?MTID=mefd1c148a0e399c55e76b2635466fb37 Join by meeting number Meeting number (access code): 2517 805 3006 Meeting password: XSz7BJs93KX (97972579 when dialing from a phone or video system)

PFS Based Storage

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

तकनीकी विशिष्टियाँ /Technical Specifications

Specification Document	View File
BOQ Detail Document	View File

Advisory-Please refer attached BOQ document for detailed consignee list and delivery period.

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	**परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer**	**पता/Address**	**मात्रा /Quantity**	**डिलीवरी के दिन/Delivery Days**

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Vinayak Waman Sutar	411008,C-DAC C-DAC Innovation Park, Panchavati, Pashan	1	45

Tape Library

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

तकनीकी विशिष्टियाँ /Technical Specifications

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परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Vinayak Waman Sutar	411008,C-DAC C-DAC Innovation Park, Panchavati, Pashan	1	45

Backup Software And Servers

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

तकनीकी विशिष्टियाँ /Technical Specifications

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BOQ Detail Document	View File

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परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Vinayak Waman Sutar	411008,C-DAC C-DAC Innovation Park, Panchavati, Pashan	1	45

ITC Charges

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

तकनीकी विशिष्टियाँ /Technical Specifications

Specification Document	View File
BOQ Detail Document	View File

Advisory-Please refer attached BOQ document for detailed consignee list and delivery period.

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Vinayak Waman Sutar	411008,C-DAC C-DAC Innovation Park, Panchavati, Pashan	1	60

Additional Items

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

तकनीकी विशिष्टियाँ /Technical Specifications

Specification Document	View File
BOQ Detail Document	View File

Advisory-Please refer attached BOQ document for detailed consignee list and delivery period.

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Vinayak Waman Sutar	411008,C-DAC C-DAC Innovation Park, Panchavati, Pashan	1	45

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. **Generic**

   OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be (Increased quantity ÷ Original quantity) × Original delivery period (in days), subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

2. **Forms of EMD and PBG**

   Bidders can also submit the EMD with Account Payee Demand Draft in favour of

   C-DAC
   payable at
   Pune
   .
   Bidder has to upload scanned copy / proof of the DD along with bid and has to ensure delivery of hardcopy to the Buyer within 5 days of Bid End date / Bid Opening date.

3. **Forms of EMD and PBG**

   Bidders can also submit the EMD with Banker’s Cheque in favour of

   C-DAC
   payable at
   Pune
   .
   Bidder has to upload scanned copy / proof of the BC along with bid and has to ensure delivery of hardcopy to the Buyer within 5 days of Bid End date / Bid Opening date.

4. **Forms of EMD and PBG**

   Bidders can also submit the EMD with Payment online through RTGS / internet banking in Beneficiary name

   C-DAC (Centre for Development of Advanced Computing)
   Account No.
   051610110002660
   IFSC Code
   BKID0000516

Bank Name
Bank of India
Branch address
Pashan Road Branch, Pune 411 008. Contact – 020-2589-3222
.
Bidder to indicate bid number and name of bidding entity in the transaction details field at the time of on-line transfer. Bidder has to upload scanned copy / proof of the Online Payment Transfer along with bid.

5. **Forms of EMD and PBG**

   Successful Bidder can submit the Performance Security in the form of Account Payee Demand Draft also (besides PBG which is allowed as per GeM GTC). DD should be made in favour of

   C-DAC
   payable at
   Pune
   . After award of contract, Successful Bidder can upload scanned copy of the DD in place of PBG and has to ensure delivery of hard copy to the original DD to the Buyer within 15 days of award of contract.

6. **Forms of EMD and PBG**

   Successful Bidder can submit the Performance Security in the form of Payment online through RTGS / internet banking also (besides PBG which is allowed as per GeM GTC). On-line payment shall be in Beneficiary name

   C-DAC (Centre for Development of Advanced Computing)
   Account No.
   051610110002660
   IFSC Code
   BKID0000516
   Bank Name
   Bank of India
   Branch address
   Pashan Road Branch, Pune 411 008. Contact – 020-2589-3222
   . Successful Bidder to indicate Contract number and name of Seller entity in the transaction details field at the time of on-line transfer. Bidder has to upload scanned copy / proof of the Online Payment Transfer in place of PBG within 15 days of award of contract.

अस्वीकरण/Disclaimer

The additional terms and conditions have been incorporated by the Buyer after approval of the Competent Authority in Buyer Organization, whereby Buyer organization is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any eccentricity / restriction arising in the bidding process due to these ATCs and due to modification of technical specifications and / or terms and conditions governing the bid. If any clause(s) is / are incorporated by the Buyer regarding following, the bid and resultant contracts shall be treated as null and void and such bids may be cancelled by GeM at any stage of bidding process without any notice:-

1. Definition of Class I and Class II suppliers in the bid not in line with the extant Order / Office Memorandum issued by DPIIT in this regard.
2. Seeking EMD submission from bidder(s), including via Additional Terms & Conditions, in contravention to exemption provided to such sellers under GeM GTC.
3. Publishing Custom / BOQ bids for items for which regular GeM categories are available without any Category item bunched with it.
4. Creating BoQ bid for single item.
5. Mentioning specific Brand or Make or Model or Manufacturer or Dealer name.
6. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
7. Floating / creation of work contracts as Custom Bids in Services.
8. Seeking sample with bid or approval of samples during bid evaluation process. (However, in bids for attached categories, trials are allowed as per approved procurement policy of the buyer nodal Ministries)

9. Mandating foreign / international certifications even in case of existence of Indian Standards without specifying equivalent Indian Certification / standards.
10. Seeking experience from specific organization / department / institute only or from foreign / export experience.
11. Creating bid for items from irrelevant categories.
12. Incorporating any clause against the MSME policy and Preference to Make in India Policy.
13. Reference of conditions published on any external site or reference to external documents/clauses.
14. Asking for any Tender fee / Bid Participation fee / Auction fee in case of Bids / Forward Auction, as the case may be.
15. Buyer added ATC Clauses which are in contravention of clauses defined by buyer in system generated bid template as indicated above in the Bid Details section, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by GeM GTC.
16. In a category based bid, adding additional items, through buyer added additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogs or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller within 4 days of bid publication on GeM. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो।बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---

Centre for Development of Advanced Computing

A Scientific Society of Ministry of Electronics & Information Technology,
Government of India
Innovation Park, Panchavati, Pashan Road, Pune - 411008
Tel: +91-20-25868086 / 020-25503671-75
www.cdac.in / mmg@cdac.in

C-DAC INVITES BIDS FOR "SUPPLY, INSTALLATION, INTEGRATION, TESTING & COMMISSIONING (SIITC) OF HPC-AI High Performance Storage and Archival Solution" THROUGH THE GEM PORTAL.

Section I – INVITATION OF BIDS

1. INTRODUCTION:

Centre for Development of Advanced Computing (C-DAC) - is a scientific society under the administrative control of the Ministry of Electronics & Information Technology, Government of India. Requirement mentioned under the Schedule of Requirements **(Section- III)** and other terms and conditions stipulated in this document through GEM Portal.

2. CONTACT INFORMATION:

Materials Management Group 2ND Floor
Centre for Development of Advanced Computing (C-DAC) Innovation Park, PANCHAVATI, Pashan Road, Pune 411008. Tel No.: +91-20–2550 3671 to 676 Fax No.: +91-20–25694004
E-mail: mmg@cdac.in

3. DOCUMENTS TO BE SUBMITTED ALONG WITH BID (TECHNICAL COVER)

The bidder must upload the copies of pdf documents as listed below:

a. Covering letter, as per **Annexure – A.**
b. Authority letter, as per **Annexure – B.**
c. The undertakings from the Principal Manufacturers (OEMs) of equipment/ items offered as per **Annexure – C.**
d. Details of EMD amount OR in case of exempted bidders, the Undertaking on bidder's letterhead, towards EMD exemption as per format given in **Annexure - E**
e. Undertaking to be submitted as per **Annexure – F** in compliance to the Make In India order/OM.
f. Undertaking to be submitted as per **Annexure – G** in compliance to the Land Border Sharing order/OM
g. Scanned copy of the duly signed Integrity pact to be submitted as per **Annexure – H.**
h. Copy of GST registration certificates, as applicable.
i. Compliance statement indicating the compliance of the items, equipment, and solution offered with the tender specifications.
j. A copy of a certificate from a Chartered Accountant certifying the annual sales turnover of the bidder for the last 3 financial years.
k. Other documents necessary in support of eligibility criteria, product catalogues, brochures etc.

Note: C-DAC reserves the right to reject the bid if any of the above-listed document/s is not submitted.

(END OF SECTION I)

Section II – INSTRUCTION TO BIDDERS

1. LOCATION FOR THE SUPPLY, INSTALLATION & WARRANTY SERVICES:

Centre for Development of Advanced Computing (C-DAC) Innovation Park, PANCHAVATI, Pashan Road, Pune 411008

2. EXECUTION & DELIVERY PERIOD:

a. **HPC-AI High Performance Storage and Archival Solution** along with all necessary components, accessories, hardware etc. must be supplied within 45 Days from the Date of award of contract.
b. The execution of installation, testing, commissioning and acceptance shall be completed within 15 Days post-delivery.

3. TRAINING

Installation, Integration and hands-on training shall be carried out for all Systems/ Software and other functional aspects pertaining to the solution.

4. ELIGIBILITY CRITERIA:

The bidder must comply with the minimum eligibility criteria stipulated below.

a. The bidders should upload the required documents / financial instruments as stipulated at point 3 of Section – I.
b. The bidder must be either a Principal Manufacturer (OEM – Original Equipment Manufacturer) of items required or their respective Indian subsidiary, or their (OEM's) authorized system integrator/dealer in India.
c. The Original Equipment Manufacturer (OEM) of the offered product must have a minimum of 5 years of experience in the regular manufacturing and supply of PFS based HPC-AI storage in India
d. Manufacturer authorization: Manufacturers Authorization Form (MAF)/ Certificate from OEM(s) need to be submitted with details such as Bid No., OEM name, designation, address, e-mail Id and Phone No. required to be furnished along with the bid.
e. If the bidder is an authorized system integrator/dealer, the specific authorization letter/s from Principal/s, as per **Annexure - C** must be submitted along with the technical bid. In this case, the authorization letter (**Annexure – C**) issued by the Indian subsidiary of the Principal Manufacturer is acceptable.
f. If the bid is submitted by the Indian subsidiary of the Principal Manufacturer (OEM), the letter from the Principal Manufacturer (OEM) must be submitted certifying that the bidder is the subsidiary company of the Principal Manufacturer (OEM) in India.
g. The Indian agent or System Integrators/dealer and the principal manufacturer (OEM) of the item cannot bid simultaneously. Further, the OEM is not allowed to quote/allow their product through SI if they themselves are participating in the bid directly.
h. Bidder should have well established Installation, Commissioning, Training, Troubleshooting and Maintenance Service Centre in Pune for attending the after sales service. Details of Service Centers near consignee destinations are to be uploaded along with the bid.
i. PFS storage OEM should have the quoted product/File-system-type listed on IO500.ORG with minimum throughput of 100 GiB/s in the past 3 Years.
j. The bidder and OEM must have supplied and installed successfully at least two orders of PFS based HPC-AI Storage to any Central/State Government Organization, PSU, or any other government organization in India; having a usable capacity of a minimum of

each 5PB in the last five years. Copies of contracts / work orders and documentary evidence/ proof of successful execution (signed acceptance report by end user, P.O. copy) must be submitted along with the bid.

k. The bidder and OEM must have supplied and installed successfully at least two orders of Tape based Archival Storage to any Central/State Government Organization, PSU, or any other government organization in India; having a usable capacity of a minimum of each 5PB in the last five years. Copies of contracts / work orders and documentary evidence/ proof of successful execution (signed acceptance report by end user, P.O. copy) must be submitted along with the bid.

l. The bidder must have an average annual sales ***turnover of Rs. 15 crores (Rs. Fifteen Crores ONLY)*** for the last three financial years. Bidder shall submit the supporting documents towards the same.

m. C-DAC reserves the right to verify the documents submitted by the bidder directly with the respective purchaser to confirm the details of the supply and performance.

n. C-DAC reserves the right to reject a bid if the OEM/bidder has a record of non-fulfilment of contractual obligations or unsatisfactory performance in any previous contracts with C-DAC, as documented by the respective end-user.

o. The bidder must quote for all the items required to complete the scope of supplies as given in **Section IV** of this document.

p. The bidder must agree to provide and execute the entire scope of work involved as per **section - IV.**

q. The bidder must not be blacklisted by C-DAC or any other Educational / R&D / Govt. Organizations / PSUs, as on date of submission of bids. A certificate or undertaking to this effect must be submitted as per **Annexure A.**

r. **Exemption to MSE & start-up shall be provided for the Turnover Criteria and not on past experience as the procurement is of mission critical project. The necessary applicable experience criteria shall be required.**

s. The product offered should be in compliance with the Order No.F.7/10/2021-PPD (1) (Public Procurement No. 4) dated 23.02.2023 issued by Procurement Policy Division, Department of Expenditure, Ministry of Finance, GOI. Bidder has to submit a declaration in this regard as per Annexure G. Also, bidder has to declare the COUNTRY OF ORIGIN OF OEM and COUNTRY OF MANUFACTURING of the offered product as per Annexure G

t. As the Make In India Order No. P-45021/2/2017-PP(BE-II)-Part(4)Vol.II dated 19.07.2024 issued by Public Procurement Section, Department of Promotion of Industry and Internal Trade (DPIIT), Ministry of Commerce & Industry, GoI kindly mention the MII (%) of the offered product as per Annexure F. Bidder should declare and abide by the Terms and Conditions of the mentioned Annexure F.

u. The printed catalogue/leaflet/brochures/ product links, published by the principal manufacturer of the items quoted to be submitted along with the Technical Bid.

v. The bidder must submit the signed Integrity Pact as provided in Annexure H, non-submission of the same may lead to disqualification of the bidder.

w. The printed catalogue/leaflet/brochures/ product links, published by the principal manufacturer of the items quoted to be submitted along with the Technical Bid.

x. The bidder must submit the technical compliance sheet/report as per the technical requirements/features, the mandatory conditions, scope of work, benchmarks, stating deviations if any.

y. PFS Storage and Tape Library OEM must have registered sales & service support center / office in India for more than 5 years; documentary proof must be submitted.

z. PFS base Storage and Tape Library OEM should have spare parts warehouse located in the Pune Metropolitan Area (PMR) or Mumbai Metropolitan Area (MMR)

aa. The bidder must be a legal Indian entity registered under the appropriate Law/ Act.

Note: The bidder should provide sufficient documentary evidence to support the eligibility criteria and exemptions mentioned. C-DAC reserves the right to reject any bid not fulfilling the eligibility criteria. C-DAC reserves the right to reject any bid not fulfilling the eligibility criteria.

5. CLARIFICATIONS / QUERIES

In case of any doubts and/ or queries pertaining to technical solution, specifications terms and conditions of the bidding document, prospective bidder may send their queries in writing through e-mail (mmg@cdac.in). The queries, requests for clarifications etc. must be sent within 7 days from the date of publication of the GeM bid. The bidders are requested to go through the entire bid document thoroughly, before raising any query. C-DAC, Pune shall address the queries raised by the bidders. The replies to queries would be made available on email/C-DAC's web site in due course of time. All the queries, doubts, clarifications etc. must be submitted in xls format only as below.

Name of the bidder:					
Sl. No.	Section / Page No	Clause Reference	Clarification / Change Request	Justification (In case of Change Request)	C-DAC Response

6. EXEMPTIONS:

If in the view of bidder, any exemption / relaxation is applicable to them from any of the eligibility requirements under any Rules, process, Guidelines, Directives of Government of India, bidder may submit their claim for the applicable exemption /relaxation, quoting the valid Rule, process, Guidelines or Directives. In this case the bidder must submit necessary and sufficient valid documents along with the technical bid, in support of their claim. The decision about granting the exemption/ relaxation will be taken by the bid evaluation committee which is empowered to grant exemption/relaxation.

7. AMENDMENT TO BIDDING DOCUMENTS

At any time prior to the deadline for submission of bids, C-DAC may, for any reason, whether on its own initiative or in response to the clarification request by a prospective bidder, modify the bid document.

a. The amendments to the documents, if any, will be notified by release of Corrigendum Notice on, GeM portal / www.cdac.in/ tender against this bid. The amendments/ modifications will be binding on the bidders.
b. C-DAC at its discretion may extend the deadline for the submission of bids if it thinks necessary to do so or if the bid document undergoes changes during the bidding period, in

order to give prospective bidders time to take into consideration the amendments while preparing their bids.

8. BID SECURITY / EARNEST MONEY DEPOSIT (EMD)

a. The bidder should submit an the EMD amount as per the GeM bid document.
b. MSE / Start-ups / Exempted bidders as per GeM policy, for the offered solution may be exempted from submitting the EMD. The exempted bidders as per EXEMPTION clause above should submit the relevant document for the exemption sought. Also, bidder claiming exemption should submit EMD undertaking as per Annexure E instead of EMD amount.

The EMD shall be forfeited and/or legal actions may be taken as per the EMD Declaration in following cases:

- If the bidder withdraws the bid during the period of bid validity specified in the tender.
- In case a successful bidder, fails to furnish the Performance Security (Refer Clause 3 of Section II).
- If the bidder fails to furnish the acceptance in writing, within 7 days of award of contract/ order.

9. PERIOD OF VALIDITY OF BIDS

a. Bids shall be valid for minimum 120 days from the date of submission. A bid valid for a shorter period shall stand rejected.
b. C-DAC may ask for the bidder's consent to extend the period of validity. Such request and the response shall be made through GeM portal only. The bidder is free not to accept such request without forfeiting the EMD/BG/ Annexure E.

10. PURCHASER'S RIGHT TO AMEND / CANCEL

a. C-DAC reserves the right to amend the eligibility criteria, commercial terms & conditions, Scope of Supply, quantities, technical specifications etc. The same shall be published on the Portals.
b. C-DAC reserves the right to cancel the entire or partially tender without assigning any reasons thereof.
c. C-DAC reserves the right to reject the bid submitted by the lowest evaluated bidder.

11. CORRUPT OR FRAUDULENT PRACTICES

It is expected that the bidders who wish to bid for this project have highest standards of ethics.

a. C-DAC will reject bid if it determines that the bidder recommended for award has engaged in corrupt or fraudulent practices while competing for this contract;
b. C-DAC may declare a vendor ineligible, either indefinitely or for a stated duration, to be awarded a contract if it at any time determines that the vendor has engaged in corrupt and fraudulent practices during the award / execution of contract.

12. INTERPRETATION OF THE CLAUSES IN THE BID DOCUMENT / CONTRACT DOCUMENT

In case of any ambiguity/ dispute in the interpretation of any of the clauses in this Tender Document, the interpretation of the clauses by Director General, C-DAC shall be final and binding on all parties.

13. INDEMNITY:

The successful bidder shall indemnify, protect and save C-DAC from/against all claims, losses, costs, damages, expenses, action suits and other proceeding, resulting from/arising out of:

a. infringement of any law pertaining to intellectual property, patent, trademarks, copyrights, safety and security etc. by the bidder or
b. such other statutory infringements by the successful bidder pertaining to perform the work, or
c. any act/omission/performance/under or non or part performance/failure of the bidder.

14. TERMINATION

In case of the delay in providing the stipulated supplies / services, and /or defect/under or non- performance pertaining to the services / products supplied by the bidder, C-DAC will give written notice to the bidder requesting to rectify the needful within 15 days of notice. If bidder fails to comply with the requirements, C-DAC shall have the right to terminate the contract and / or cancel the order/s. The successful bidder agrees and accepts that he shall be liable to pay damages claimed by C-DAC, in the event of termination of contract / cancellation of order. The successful bidder may terminate the contract by at least 15 days' written notice, only in the event of non-payment of undisputed invoices for 30 days from the due date. Except this situation, the successful bidder shall have no right of termination.

C-DAC reserves the right to terminate the contract / cancel order with or without cause/ reason, by giving 30 days' notice to the successful bidder.

15. ASSIGNMENT:

Selected bidder/ Party shall not assign, delegate or otherwise deal with any of its rights or obligation under this Contract without prior written permission of C-DAC.

16. INTEGRITY PACT

The bidder is required to enter into an Integrity Pact with C-DAC. For this, the bidder shall submit the scanned copy of signed, stamped and notarised Integrity Pact as per **Annexure H** on of appropriate denomination, as part of technical bid, failing which, the Proposal submitted by the concerned bidder will be summarily rejected. The original document should be couriered to C-DAC. The format for the Integrity Pact is provided in Annexure.

Details of IEM is provided below:

1) Shri. M P Johnson - Email ID- johnsonmp1961@gmail.com
2) Shri. Vijay Kumar Singh Email ID - vijaysinghsls10@gmail.com

(END OF SECTION II)

Section III – SPECIAL CONDITIONS OF CONTRACT

1. PRICES

a. The price shall be considered firm. No price escalation will be permitted (except Govt. Statutory Levies if changed by Govt after submission of the bid).
b. The prices will be compared on GST-inclusive rates quoted/calculated by the bidder and as per the GeM GTC. In case of errors, the bidders will not be permitted to change the GST percentage.
c. The prices quoted must be "All inclusive- till destination", (including local freight, insurance, forwarding, loading/unloading, installation, testing, commissioning and all incidental charges till destination).
d. The statutory taxes and duties applicable at the time of supply of material shall be applicable if offered.
e. The responsibility, cost and risk of the consignment shall rest with the bidder till receipt of goods is acknowledged by the end user at site(s). However, such receipt/ acknowledgement shall not be treated as acceptance of goods.

2. SOFTWARE LICENSES: (IF APPLICABLE)

Software licenses, if any, shall be required in the name host institutes. The licenses shall contain paper/electronic licenses (wherever applicable).

3. PERFORMANCE SECURITY / BANK GUARANTEE (PBG):

The successful bidder will be required to furnish the Performance Guarantee towards the items supplied, in the form of a Bank Guarantee in INR equivalent to 5% amount of the total order value, as per the format attached to this document **(Annexure – D)**.

This bank guarantee should be submitted after receipt of the order / GeM contract within 15 days. The Bank Guarantee shall remain valid for ***41 months*** from the date of the GeM contract covering the delivery, installation, testing, commissioning and warranty duration. The PBG must be negotiable at a branch of issuing bank in India. In case of no warranty/services claims towards the items under warranty and services during the validity period of the bank guarantee, the PBG will be returned on completion of the warranty period.

C-DAC reserves the right to invoke the Performance Bank Guarantee(s) submitted by bidder, in case of the following:

a. The vendor fails to supply/install / test/commission / execute any other associated activity; or
b. The Item/Components fail to achieve the performance as stipulated in this document or
c. The bidder fails to provide the warranty and other services in scheduled time frame, as stipulated in this document or
d. The bidder delays to provide the warranty services as stipulated in this document.

4. COMPLETENESS RESPONSIBILITY:

Notwithstanding the scope of work, engineering, supply and services stated in bid document, any equipment or material, engineering or technical services which might not be even specifically mentioned under the scope of supply of the bidder and which are not expressly excluded therefrom but which – in view of the bidder - are necessary for the performance of the equipment in accordance with the specifications are treated to be included in the bid and has to be performed by bidder.

The items which are over & above the scope of supply specified in the Schedule of Requirements may be marked as “Optional Items”.

5. WARRANTY:

The Supplier warrants that all the Goods are new, unused and that they incorporate all recent improvements in design and materials unless provided otherwise in the order. The supplier further warrants that all Goods supplied shall have no defect arising from design, materials or workmanship (except when the design and/or material is required by the Purchaser’s specifications) or from any act or omission of the supplier. The warranty should be comprehensive on site, repair/replacement basis free of cost covering 3 years period after successful supply, installation, testing, commissioning and acceptance by C-DAC. OEM for the solution must send the engineers onsite for any hardware replacement and software upgrade.

The supplier also warrants that the said goods would continue to conform to the description and quality aforesaid for a period of ***min. 3 years*** from the date of acceptance by the end user and that notwithstanding the facts that the Purchaser/ end user (Inspector) may have inspected and/or approved the said Goods. If during the aforesaid period of 3 years the Goods be discovered not to conform to the description and quality aforesaid or have deteriorated Purchaser will be entitled to reject the Goods or such portion thereof as may be discovered not to conform to the said description and quality. On such rejection, the Goods will be at the supplier’s risk and all the provisions herein contained relating to rejection of Goods, shall apply. The supplier if called upon to do so, shall replace within one month or such further period as may be extended by the Purchaser on his discretion on an application made thereof by the supplier the goods or such portion thereof as is rejected by Purchaser and in such an event the above mentioned warranty period shall apply to the Goods replaced from the date of acceptance of the replacement otherwise , the supplier shall pay to the Purchaser such damages as may arise by reason of breach of the conditions therein contained.

All items supplied shall include 3 (Five) years onsite comprehensive warranty with NBD support. The following warranty terms shall be uniformly applicable to all supplied devices and components:

A. All supplied items shall carry a 3-year onsite comprehensive warranty at no additional cost for change or replacement of parts, labor charges, consumables, shipment, and insurance.
B. The warranty shall include 24x7 support with a 4-hour response time and Next Business Day (NBD) resolution.
C. Warranty period will start after the signing of Acceptance Report by C-DAC.
D. Hardware replacement or resolution shall be completed within 24 hours of issue reporting.
E. The warranty shall cover and support all software, firmware, and associated licenses (including all subscribed features) effective from Day One.
F. Telephonic, Email, and Chat support with a single point of contact for 24x7x365 call logging shall be provided by the OEM, along with an escalation matrix.
G. The devices shall not go out EOSL for at least 2 years after the expiry of the initial warranty period of 3 Yrs.
H. New version upgrades, updates, patches, etc for all the components/ sub-components through the period of contract shall be provided. 24/7 telephonic and email OEM support.

6. POST WARRANTY AMC

OEM has to give an undertaking that after expiry of warranty period, it will provide AMC Service for next 2 years for the offered products at the rate not more than 10% of only the hardware & software price per annum. An undertaking towards the same needs to be submitted.

The post warranty AMC charges will be binding on the bidder. C-DAC/Client reserves the right to enter or not to enter into the AMC after the end of initial warranty period of Five years.

7. PAYMENTS:

80% amount of the order value will be released on submission of PBG and receipt of material at respective site(s), within 30 days of submission of all relevant documents and acceptance by C-DAC. PBG must be submitted within 15 days from the date of GeM contract. In case of non-submission of PBG within 15 days, any loss due to fluctuation in foreign exchange rates or any other reasons will be at beneficiary account.

Balance 20% amount shall be released after commissioning and acceptance by C-DAC.
If CDAC/Client decides to enter into CAMC contract after initial warranty period, CAMC payments for the post-warranty period (i.e., for 4th year & 5th year) will be released post-quarterly on satisfactory completion of CAMC services for the corresponding period. Applicable TDS will be deducted.

Note: All the payments are subject to submission of the valid and complete tax invoices.

8. PENALTY FOR DELAYED DELIVERY /SERVICES

For delayed delivery of the solution the penalty shall be as per GEM standard clause. For delay in services/support, if the Vendor fails to complete service / rectification with defined time limit, a penalty of 0.5% of total price of the delayed product shall be charged as penalty for each week of delay from the Vendor. Vendor can deposit the penalty with C-DAC directly else the C-DAC shall have a right to recover all such penalty amount from the Performance Security deposit (PBG/ePBG).

Cumulative Penalty cannot exceed more than 10% of the total contract value after which the C-DAC will have the right to get the service / rectification done from alternate sources at the risk and cost of the vendor besides forfeiture of PBG. Vendor will be liable to re-imburse the cost of such service / rectification to the C-DAC at actuals.

C-DAC reserves the right to cancel the order in case the delay is more than 2 weeks. The delay in delivery and/or execution, not attributed to supplier viz. delay in site allocation / availability, delay in submission of required documents (by C-DAC), approval etc. and the conditions arising out of Force Majeure will not be considered for the purpose of calculating penalties.

All delays occurring/envisaged by the vendor need to be intimated at least two weeks in advance from the occurrence (including Force Majeure).

9. JURISDICTION

The disputes, legal matters, court matters, if any shall be subject to Pune jurisdiction only.

10. FORCE MAJEURE

C-DAC may consider relaxing the penalty and delivery requirements, as specified in this document, if and to the extent that, the delay in performance or other failure to perform its obligations under the contract is the result of an Force Majeure. Force Majeure is defined as an event of effect that cannot reasonably be anticipated such as acts of God (like earthquakes, floods, storms etc.), acts of states / state agencies, the direct and indirect consequences of wars (declared or undeclared), hostilities, national emergencies, civil commotion and strikes at successful Bidder's premises or any other act beyond control of the bidder.

11. RISK AND OWNERSHIP

Upon 100% of payment and post successful acceptance testing, C-DAC shall become owners of goods / software ordered. However, all risks, responsibilities, liabilities thereof in all goods shall remain with selected bidder till installation, commissioning, integration, training and knowledge transfer of all goods to the end user. Part deliveries shall not be treated as deliveries. Only full deliveries of all items ordered will be considered as delivery.

12. SEVERABILITY

If any provision of this Contract is determined to be invalid or unenforceable, it will be deemed to be modified to the minimum extent necessary to be valid and enforceable. If it cannot be so modified, it will be deleted and the deletion will not affect the validity or enforceability of any other provision.

13. SUB-CONTRACTING

The supplier shall notify the Procuring Entity in writing all subcontracts awarded under the contract. In its original bid or later, such notification shall not relieve the contractor from any of its liability or obligation under the terms and conditions of the contract. Subcontracts must comply with and should not circumvent Contractor's compliance with its obligations as per this tender, based on which the contract was awarded to him.

(END OF SECTION III)

Section IV – SCHEDULE OF REQUIREMENTS/SCOPE OF WORK

(Installation, Commissioning, Testing, Configuration is to be carried out by OEM Engineers. OEM professional services shall be quoted as part of supply for the respective IT Infrastructure Items in the Section-IV)

1. DETAILED SCOPE OF WORK/REQUIREMENTS

I. All the components shall be supplied, installed and integrated at C-DAC, Pune.
II. Installation and commissioning of all devices.
III. Integrate with existing setup and perform the data migration from the existing storage.
IV. The vendor will be required to share details of any independent testing and security audit and will be responsible to remediate any vulnerability or defects discovered as part of testing by C-DAC or any agency engaged by C-DAC.
V. The vendor needs to provide all the updates pertaining to Software (both major and minor releases), Firmware's, Subscriptions, signatures during the warranty period without any additional costs.
VI. Comprehensive onsite training of complete solution must be provided for 10 members for at least 5 days.
VII. Comprehensive Acceptance report along with configuration and admin manual should be provided.

2. PFS BASED STORAGE - QTY 1 NO

Sr.	Parameter	Specifications
1.	Primary Storage (Scratch/Home Space):	1. PFS based 11 PiB usable capacity with RAID 6 (8+2) or equivalent De-clustered RAID / Erasure coding.
		2. Both read & write performance should be greater than 100GB/s.
		3. Parallel filesystem should be OEM supported Latest Lustre / GPFS / Weka
2.	Fast scratch and Home	1. Out of 11PiB, at least 1PiB capacity should be on NVMe flash drives with 100GB/s read and write throughput
		2. 10PiB on 7.2K RPM NL-SAS or better with 60GB/s read and write throughput
3.	Parallel File System & Protocol Support	1. Parallel file System should be same for both the tiers of storage, POSIX compliant and natively available on compute nodes through PFS client mount. 2. The storage must support NFS v4.x, SMBv3.0 and S3 natively OR through gateway servers; required nos. of gateway servers in HA for protocol conversion to NFS, SMB, S3 must be supplied. 3. Gateway server must be compatible for mounting within a standard 600mm (width) x 1300mm (depth) 42U rack. All necessary rack mounting kits for installation should be included as part of the solution.

Sr.	Parameter	Specifications
		4. The storage must support GPU Direct storage (GDS) for both native PFS mount and through Container Storage Integration (CSI). Supply shall include CSI driver and support for integration with C-DAC's K8S infrastructure.
4.	PFS Metadata:	1. Metadata capacity should be configured to accommodate 8 billion files. File creation capacity of minimum 1,50,000 files per second. 2. Storage solution must provide a fully distributed with high availability metadata architecture wherein metadata and metadata operations are spread across multiple metadata servers. 3. Storage should support daily backup of MDT to separate target storage device with the ability to restore same MDT/MetaData in case of any failure in primary Metadata. Feature should be natively supported by the quoted file system OR bidder can quote external commercial software to comply to this feature where in responsibility of support lies with the primary OEM.
5.	Global Spare	1. Disks amounting to minimum 5% total capacity need to be additionally provided as Hot spare. A minimum of 1 Hot-spare per disk enclosure
6.	Rebuild Time	1. RAID rebuild time should be less than 24 hrs while system is live
7.	Management and Monitoring	1. Storage solution must have a management and monitoring console for RAID system and parallel file system. It must have web-based interface for analyzing and visualizing the user, application and system wise storage performance. 2. Storage solution must have integration support with Slurm. 3. Storage solution must provide email/SMS alert mechanism.
8.	PFS Features	1. PFS should support:
		a) User, Group Quota & Directory Quota
		b) GPU Direct
		c) POSIX compliant
		d) Fine grained locking so that multiple clients can read/write from the same file simultaneously
		e) Ability to read and write in parallel to same file or different files.
		f) Data striping across multiple I/O nodes and RAID LUNS
		g) Ability to transparently recover from client, server and network failures without losing data.

Sr.	Parameter	Specifications
9.	Connectivity	1. Connectivity from I/O servers to service/compute nodes must be on InfiniBand HDR/NDR 200 Gbps. 2. All storage controllers shall have dual redundant InfiniBand connectivity & InfiniBand HCAs. 3. InfiniBand HCAs and cables on Storage controllers must be compatible with NVIDIA QM8700 Quantum InfiniBand switch with compatible ConnectX-6/ConnectX-7 InfiniBand HCA. 4. C-DAC shall provision for a maximum of 28 ports on InfiniBand switch including those required for achieving IB link redundancy. 5. All the required cables and any other switches / connectors required for connecting IO servers to the switch have to be provided by the bidder.
10.	Data Tiering & movement	1. Parallel Filesystem must support: a) Ability to use flash capacity as read & write cache for HDD capacity b) Automated, policy-based data movement from flash to HDD pool and vice versa c) Ability to access files directly whether they are in flash or HDD pool d) Ability to spill over data from flash pool to HDD pool without user intervention
11.	Data Integrity	1. Storage solutions must support data checksums to ensure the integrity of data in transit as well as support for data checksums on disks
12.	Solution Ownership	1. Storage OEM should take the complete responsibility of the entire solution including parallel file system.
13.	Resource Utilization	1. Storage solution should not utilize more than 5% of the compute core resources to deliver the required throughput.
14.	Balanced Architecture	1. The entire Solution must be balanced with respect to no. of I/O servers, network ports, LUNS, disks etc.
15.	High Availability	1. The solution should be highly available. 2. Storage subsystem should be configured with no Single Point of Failure (SPOF) including I/O servers (if required), Metadata servers, Storage array, HBA Cards, switches (if required) between I/O servers & storage controllers and power supply. 3. Fan modules, Power supply should be redundant and hot pluggable/replaceable, etc. 4. Disk replacement must be performed without service interruption (zero downtime)

Sr.	Parameter	Specifications
16.	Scalability	1. File systems should be able to scale up to double the usable capacity under single file system name space respectively.
17.	Benchmark	1. Open-source IOR/FIO benchmarks (IOR Version 3.3.X)
		a) Running on compute nodes with 1 MB transfer size and file size double than total storage cache and I/O node memory with DIRECT IO (Essentially bypassing POSIX I/O buffers)
		b) Benchmarks must be run on a minimum of 64 compute nodes/8 GPU Servers (each with 8 GPUs) where each node is writing to a separate unique file.
		c) Storage solution must deliver the performance of:
		d) 100 GB/s write throughput performance on 1 PiB flash storage
		e) 60 GB/s write throughput performance on 10 PiB storage
		f) Bidders must submit output of below mentioned MDTEST(http://sourceforge.net/projects/mdtest/) benchmarks running on minimum 64 PFS clients. Benchmark output must show minimum 1,50,000 files create/sec and 1,50,000 stat/sec.
		g) Flash storage must support 3 million Random Read IOPS with 4K block size using FIO.
		h) Bidder may use smaller storage subsystem and project the required benchmark figure for the quoted solution with justification.
		i) Performance measurements must be submitted on OEM letterhead signed by an authorized signatory showing results meeting the requirement
		2. Note: Bidders need to provide benchmark results on the InfiniBand interconnect.
18.	Client licenses	1. Must support unlimited clients (compute/management servers) for accessing the file system natively using PFS with unlimited perpetual to use licenses. 2. Standard software features that creating/ managing volumes, storage & file system monitoring. If separate licensing is required for these features, it must be included in the proposed system.
19.	Deployment/ Integration	1. Storage OEM needs to integrate, configure, and install the complete storage solution at the site in discussion with C-DAC and demonstrate the above benchmarks.
20.	Rack Space & Power	1. Storage controllers along with disk enclosures should not exceed 16KW and 42RU.

3. TAPE LIBRARY - QTY 1 NO

Sr.	Parameter	Specification
1.	Tape Library	1. Tape Library of min. 10PB Native capacity expandable to 14 PB - Qty-01. Max. 42U. The tape library should be a single chassis with further scope for expansion. The required chassis / rack to be provided by bidder.
2.	Form Factor, Slot Capacity and Scalability	1. The offered tape library must be a standalone single-frame form factor with a minimum of 350 slots, scalable to 470 or more slots as required by C-DAC.
3.	Tape Cartridges and Labels	1. Tape library shall be supplied with minimum 500 Nos. Brand new Rewritable LTO-10 tape cartridges and 20 LTO-10 Universal cleaning cartridges from the same Tape Library OEM with Colored barcode labels for all drives.
		2. It shall support fail-over connectivity for robotics control.
		3. License and support, supply should include perpetual licenses for the Tape library, minimum 8 nos logical partitioning, monitoring, advance reporting etc.
		4. Additional barcode labels of 1 set (total 350 labels) are to be supplied
4.	Functionality	1. Offered Tape drive should be native FC LTO-10 drives, minimum 8 nos., with 8/16 Gbps FC interface
		2. Tape Library should be supplied with Eight no. of FC based I/O interfaces (one for each drive)
		3. Quoted Tape library, Tape drives should support WORM functionality and WORM tapes
		4. The Tape Library should support barcode reading
		5. The Tape Library should have support for partitioning of tape library (at least 8)
		6. The necessary software and associated perpetual licenses must be supplied with library
		7. Tape Library should have GUI panel
		8. The Tape Library should be capable of auto cleaning of drives.
		9. All power cables should be of IEC male type for rack side connectivity
		10. Management: Tape Library should provide remote monitoring capability (Ethernet based management port) and should be SMI-S/ (SNMP& SMTP) complaint.
		11. Bidder should supply all the required cables required for installation, configuration and integration of tape library

Sr.	Parameter	Specification
		12. Offered Tape Library shall be compatible quoted backup software.
		13. Tape Library should support encryption so as to write the media in an encrypted format and to restrict the access of the Tape media from other Tape library. Encryption license should be included for all 8 LTO drives.
		14. Supply should include required Software, Hardware and associated licenses to provide the encryption and decryption of the data. encryption manager shall be offered with redundant in HA pair to configure Virtual/ Physical appliance to keep the encryption keys in redundant fashion.
5.	Switches	**SAN Switches:** 1. Required number of switches and cables along with licenses should be provided with compatible transceivers. 2. Provide cables should include 30m cables also 3. Provided Switches should be compatible and should support to integrate with canonical openstack cloud stack. **100 GbE switches:** 1. Quantity 1 Nos. 2. 100GbE 1U Switch, 32x 100GbE QSFP 28 ports, 2 Power Supplies (AC), x86 CPU, standard depth, P2C airflow, Rail Kit. The switch should be compatible with ARISTA DCS-7050CX3-32C-R 3. Support for L2/L3 functionality, SNMP v (2c, 3), sFlow, VXLAN, EVPN, VTEP, Configuration Management, SDN, RMON, Network Virtualization, OpenFlow/Netconf, and RJ-45 Management interface. 4. Management & Automation: FTP, TFTP, scp, ACL, API, SYSLOG, DHCP, SSHv2, Telnet, CLI, Web UI, etc. 5. Monitoring & Telemetry, Security, integration with Network Virtualization platforms like VMware NSX, OpenStack, OVN, etc. 6. All switches should be compatible with each other. 7. Switch should compatible with canonical openstack so that it can easily integrated, monitor and manage using the cloud stack

Sr.	Parameter	Specification
		8. Switch should be compatible with the below mentioned Backup targets and sizing and cloud stack to deliver the SDN capability. Cables: 6 Nos. ETH 100Gb/s QSFP28 MMF Active Optical Cables, QSFP, LSZH, 30m or higher 8 Nos. ETH 100Gb/s QSFP28 MMF Active Optical Cables, QSFP, LSZH, 5m Also need to provide the required number of Uplink cables.
6.	Rack compatibility	1. Should be compatible with standalone 19-inch standard rack and supply should include rack mounting kit and rack with castor and front door. Rack should be provided with required numbers of PDUs with compatible sockets.
7.	Power Supply	1. Power supply Should support hot swap power supplies, Supply should include Latest 80 Plus Certified redundant hot swappable Power supplies with cooling fans
8.	Media Compatibility	1. Offered Tape Library shall support multiple Brands Media cartridges, there should not be any vendor locking to read, write and supporting specific OEMs of Media.
9.	Capacity and Future Expansion	1. The proposed tape library must be able to support future tape drive technology without changing the tape library, it shall scale up to 16 LTO-10 drives.
10.	LTFS Support	1. The quoted tape library should support LTFS (Linear Tape File System)
11.	Ransomware Protection tool	1. Offered Tape Library should support efficient way of providing an Air-Gapped mechanism to protect the media from online threats. 2. Proposed Library must support the functionality to protect Data against Ransomware and create physical barrier between the robotic arm and media cartridge and can only be activated/ de-activated by user or Admin.
12.	Vaulting	1. Proposed Library should support in-Library Vaulting functionality which avoid and eliminate the need of physically handpick the media manually.

Sr.	Parameter	Specification
		2. Vaulting shall be supported within library and make the media offline even if they are kept in the library
13.	Management & Monitoring	1. Tape library management software should support advanced reporting and management features which shall include the following-
		a) Status information on the drive and system
		b) Proactive monitoring and advanced diagnostics
		c) System error and status logs
		d) System configuration operations and reporting
		e) Automatic Drive firmware upgrade capabilities
		f) Drive utilization report and media analysis
		g) Diagnostic tests and information Cartridge movement for maintenance and management purposes
		h) Cleaning cartridge support
		i) Set up wizard, mixed media and partitioning
		j) Security report and media removal notifications
		k) Library configuration protection
		l) WWN / Serial Number spoofing
		m) Firmware auto leveling
		n) Proactive diagnostics embedded within the library monitor major subsystems, runs self-diagnostic procedures, and policy-based communications to system administrators
14.	System Endurance	1. The MSBF of the proposed tape library should be at least 2,000,000
		2. The Mean Time to Repair (MTTR) of the proposed tape library should be 30 minutes.
15.	Cables	1. Supply should include IEC type power cables for the quoted Tape Librakry and factory crimped (moulded) ethernet cables of length 5 mts. 2. Cables: Supply should include 16 no. of LC-LC FC (multimode- 15Mtrs each) cables compatible with the quoted Tape drives

4. ASSOCIATED BACKUP SOFTWARE & SERVERS – QTY 1 NO.

Sr.	Parameter	Specification
1.	High Performance Capabilities	1. Solution must be capable of handling Parallel File System, multithreaded Transfer/Backup/Archival and Restore
		2. Solution must be capable of handling and backup of petabytes of unstructured file data
		3. Solution must be capable of handling and backup of billions of files and folders
		4. Solution must be able to split any task into smaller sub- tasks that are parallelized across all available data movers/backup servers
		5. Solution must be able to start data movement as soon as it has scanned a defined number of files or storage capacity, instead of waiting for the completion of the scan
2.	Heterogeneity	1. Support for quoted PFS of Primary/fast scratch and multiple File System where applicable- Native file system, Linux: Ext2, Ext3, Ext4, XFS, S3 compatible object storage, block storage
3.	Load Balancing and Failover	1. The sub-tasks are load balanced automatically on the different node or data movers in order to achieve the highest throughput possible
		2. C-DAC may use more servers to achieve a higher data transfer rate by using its servers. Bidder needs to make provision for the same.
		3. Solution must have the ability to balance the load across multiple destination storage platform
		4. If for some reasons a sub-task was to fail, it would be automatically relaunched on another node/data mover without failing the parent task
4.	Incremental Forever	1. Solution should support backup in “forever incremental” mode and never needs a new full backup
		2. Solution should also implement smart management of data versioning at the backup target levels
5.	Access Control List (ACL) Preservation even Cross-platform	1. Solution must preserve files with their ACLs on the source storage before converting them automatically to a suitable form on the target storage

Sr.	Parameter	Specification
		2. Solution should allow end-users to maintain the original folder structure of end-user data in its native format on disk or in the cloud, and benefits from the widely used Tape Archive file format (TAR)and Linear Tape File System (LTFS) format on Tape
6.	Metadata Search	1. Solution must provide search capabilities for users to locate files based on basic file properties or custom metadata
		2. Search results must be instantly displayed based on the indexed database
7.	Archiving Features	1. Solution must provide both capabilities of automatically and manually archiving data in long-term storage platforms
		2. Solution must ensure that all archived data is easy to find and accessible for as long as it needs to be retained
		3. Solution must provide user interface that enables users to archive fixed content data by simply dragging and dropping it from their file system into the archive folder of their choice
		4. Solution must be able to apply archive policy seamlessly without end-users notice and intervention.
		5. Solution can provide configurable option to automatically archive data to two or more archive repositories for redundancy protection. Each archived copy can have its own retention.
8.	Changes tracking	1. Restore: Solution should provide Tracking functionality that allows for browsing in one's backups/Archive and going back in time to easily find what has changed between two dates
		2. Restore: Solution must be able to restore a whole point in time or only selected folders/files
9.	End-user Interface	1. Solution must provide an easy-to-use interface for end- users
		2. Solution must allow end-user to trigger data movements via a simple Graphical User-interface (GUI)

Sr.	Parameter	Specification
		3. Solution must provide User Access Control and management to restrict end-users on browsing, searching and retrieving files and folder
10.	Security	1. Solution must provide encryption for all network communication and data movement over LAN and WAN.
		2. Solution must provide automatic data integrity check on data movement
11.	Authentication and Access Control	1. Solution must offer several accesses- control features: Authentication using Lightweight Directory Access Protocol (LDAP), Lightweight Directory Application Protocol and Secure (LDAPS) or internal security system
12.	Automation	1. Solution must offer robust features for automating and scheduling an archive at a given date/time and automatically identifying files for archiving based on administrators set parameters —such as file age, last access date, and file type— and then moving them to the designated archival platform
13.	Scalability	1. File systems should be able to scale up to double the usable capacity under single file system name space respectively.
14.	Backup / Archival Data Mover Benchmark	1. Solution must be able to transfer 100 TB of data from Fast scratch/Primary to Backup/Archive solution within 24 hours. This must be demonstrated during acceptance.
15.	Data Movers & Backup Servers	1. The proposed backup and archival solution must include a minimum of four (4) Data Movers & Media Agents with required number of Backup Servers to ensure the efficient operation and completion of the solution. 2. Server should be compatible for mounting in the 600mm (width) x 1300mm(depth) 42U Rack, supported rack mounting kits should be provided. 3. The Backup Server and the Data Mover roles may be consolidated onto the same physical server either on bare metal or as VM/Containers. Necessary subscription for Virtualization, Enterprise O.S. (Host and VM)

Sr.	Parameter	Specification
		must be provided and shall be perpetual to use. 4. All Data Movers must be equipped with the necessary and compatible dual port Fibre Channel Host Bus Adapters (FC-HBAs), InfiniBand Host Channel Adapters (IB-HCAs) and 100 Gigabit Ethernet (100G Ethernet) cards (as applicable in consideration with Clause 16 below. 5. All requisite hardware and software licenses for the operational use of the servers and the overall solution must be provided. 6. The bidder may refer to the provided schematic for additional details and clarity on the system architecture.
16.	Backup targets and sizing	1. 10 PB NL-SAS tiers of the proposed HPC and AI high performance storage delivered over HDR 200 2. Tyrone FluidIO ObjectStorage : S3 compliant 2PB storage Object storage delivered over 100G ethernet 3. Tyrone Opslag Verta D4ZC-24D: Unified storage used for VM store size of Unified storage is 5PB storage. Delivered over 100G ethernet 4. All necessary Media Agents and associated capacity-based licenses must be provided in unlimited quantities.

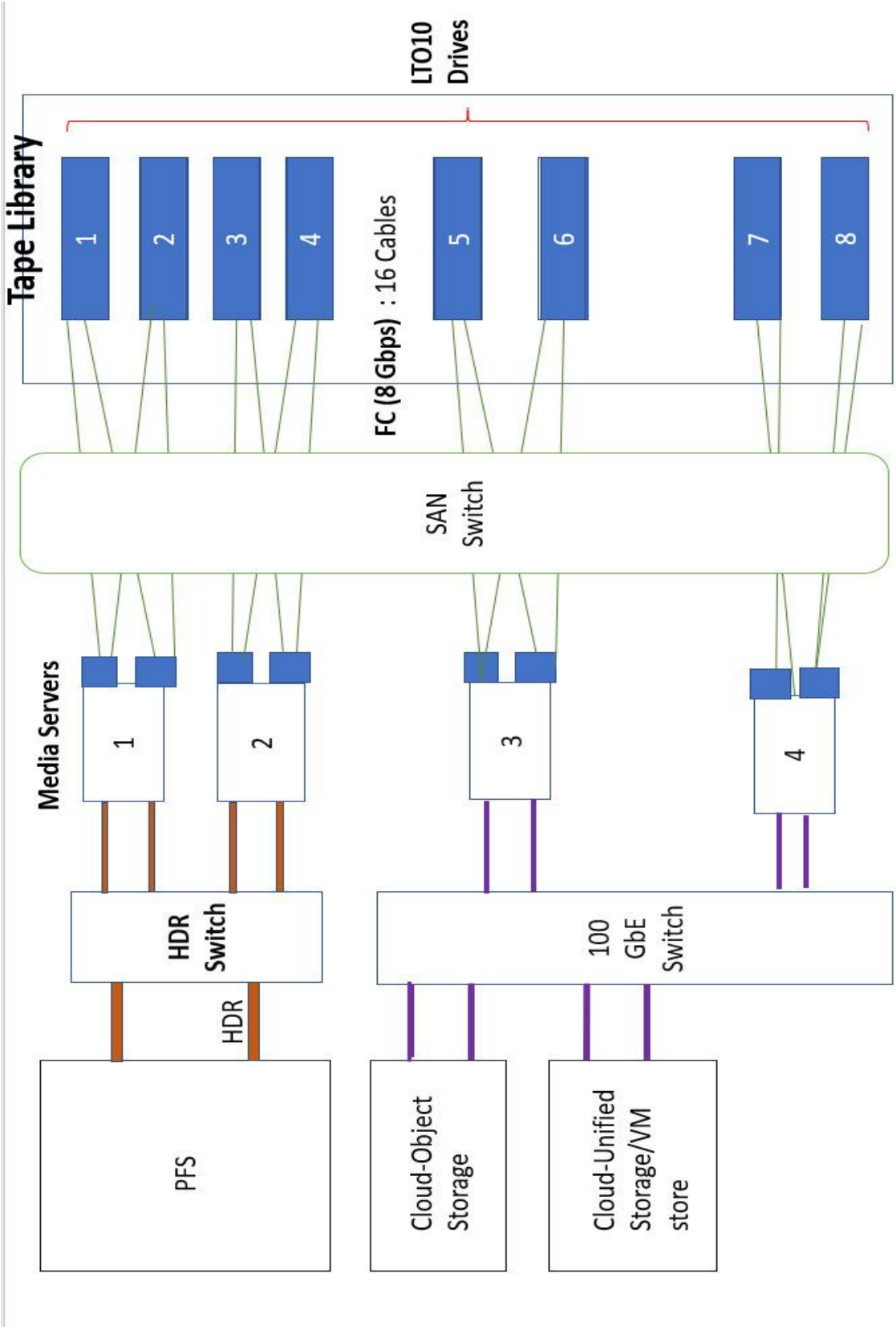


Figure – Schematic of overall solution

(END OF SECTION III)

SECTION IV: Financial Breakup - BOQ

Item No.	Item Title	Item Description	Item Qty	Unit of Measure	Consignee ID	Delivery Period (In number of days)
1	PFS Based storage	HPC and AI high performance storage	1	pieces	vinayaks	45
2	Tape Library	Tape Library with 8 Drives	1	pieces	vinayaks	45
3.	Associated Backup Software & Servers	Data Movers, Backup Servers & S/W, and Media Agent	1	pieces	vinayaks	45
4.	ITC Charges	Installation, testing commissioning etc. charges	1	pieces	vinayaks	60
5	Additional Items to complete solution	Additional Item to complete solution	1	pieces	vinayaks	45

(END OF SECTION IV)

SECTION V: BOM / BOQ

Item No.	Item Title	Brand/ Make & Model	Item Qty	Additional components to be supplied with this item
1	HPC and AI high performance storage			
2	Tape Library			
3	Backup and Archival Software			
4	Additional Items to Complete solution			

(END OF SECTION IV)

ANNEXURE A – COVERING LETTER

Date:
To:
The Director General
Centre for Development of Advanced Computing (C-DAC)
Innovation Park, Panchavati, Pashan Road,
Pune - 411008 Maharashtra, INDIA

Subject: ……
Reference: ……..

Dear Sir,
We, the undersigned, offer to ……, in response to your GEM Bid & ..... We are hereby submitting our proposal for same, which includes technical bid and the Financial Bid through GEM (gem.gov.in) portal.

We hereby declare that all the information and statements made in this bid are true and we accept that any misinterpretation contained in it, may lead to our disqualification.

We undertake, if our proposal is accepted, to submit a Performance Security of 5% of the contract / order value, as per terms stipulated in the tender.

We confirm that the deliveries, installation will be done within 30 days if the order is placed. The Post Warranty CAMC charges are not beyond 10% of the hardware and software items, as per requirements.

We hereby certify that my/ our firm has not been disqualified and / or blacklisted by any Office/ Department/ Undertaking of the State Government / Central Govt. of India, PSU/ Autonomous Body of Government of India, as on the date/time of submission of this bid.

We agree to abide by all the terms and conditions of the tender document, including corrigenda. We would hold the terms of our bid valid for 120 days as stipulated in the tender document.

We understand you are not bound to accept any Proposal you receive.

The undersigned is authorized to sign this bid document. The authority letter to this effect is enclosed.
Yours sincerely,

Authorized Signatory:
Name and Title of Signatory:
e-mail:
Mobile No:

ANNEXURE B – AUTHORITY LETTER

Date:
To:
The Director General,
Centre for Development of Advanced Computing (C-DAC)
Innovation Park, Panchavati, Pashan Road,
Pune - 411008 Maharashtra, INDIA

Subject: Authority Letter

Reference: GEM Bid Ref No. **.....**

Dear Sir,

We, M/s _____ (Name of the bidder) having registered office at _____ (address of the bidder) herewith submit our bid against the said tender document.

Mr./Ms. _____ (Name and designation of the signatory), whose signature is appended below, is authorized to sign and submit the bid documents on our behalf against said RFP

Specimen Signature:

The undersigned is authorised to issue such authorisation on behalf of us.
For M/s _____ (Name of the bidder)

Signature and company seal
Name
Designation
Email
Mobile No.

ANNEXURE C – UNDERTAKING(S) BY PRINCIPAL MANUFACTURER/OEM

(To be submitted in Original on Letterhead)

Date:
The Director General,
Centre for Development of Advanced Computing (C-DAC)
Innovation Park, Panchavati, Pashan Road,
Pune - 411008 Maharashtra, INDIA

Subject: Undertaking by Principal Manufacturer against GEM Bid & **.....**for Supply, Installation, Testing and Commissioning of **at C-DAC Pune site mentioned** under the Schedule of Requirements **(Section- III)** Dear Sir,

We, M/s _____ (Name of the manufacturer) having registered office at _____ (address of the manufacturer) by virtue of being manufacturer for _____ (Name of the product/s), hereby certify that M/s _____ (Name of the bidder) having their office at _____ (Address of bidder) are our Authorised System Integrator/dealer for our range of products quoted by them, including post warranty support (CAMC) for, 6th & 7th year, if opted.

Within the scope of requirement as per the tender mentioned above, we undertake to provide technical & other support towards fulfilling the requirements of installation, acceptance criteria and product warranty services of the components, including post warranty support (CAMC) for 6th & 7th year, if opted; to be supplied and installed at C-DAC, Pune by M/s.....(Name of bidder) .....against said tender.

We also certify that the products offered are not nearing end-of-life / end-of-support five years down the line from the date of bidding.

The undersigned is authorised to issue this certificate on behalf of M/s _____ (Name of the manufacturer).

For M/s _____ (Name of the manufacturer)

Signature & company seal
Name
Designation
Email
Mobile No.

ANNEXURE D – PROFORMA OF BANK GUARANTEE

(On non-judicial paper of appropriate value)

To,
Centre for Development of Advanced Computing
Innovation Park, PANCHAVATI,
Pashan Road, Pune – 411 008

BANKS GUARANTEE NO:
DATE:

Dear Sir(S)

This has reference to the Purchase Order No. _____ Dated _____ been placed by Centre for Development of Advanced Computing(C-DAC), Pune on M/s_____ (Name & Address of vendor) for supply, installation, commissioning and warranty of _____ (description of items) at C-DAC, Pune.

The conditions of this order provide that the vendor shall,

1. Arrange to deliver the items listed in the said order to the consignee, as per details given in said order, and
2. Arrange to install and commission the items listed in said order at client's site, to the entire satisfaction of C-DAC and
3. Arrange for the comprehensive warranty service support towards the items supplied by vendor on site as per the warranty clause in said purchase order.

M/s (Name of Vendor) has accepted the said purchase order with the terms and conditions stipulated therein and have agreed to issue the performance bank guarantee on their part, towards promises and assurance of their contractual obligations vide the Supply Order No. _____ M/s. _____ (name of vendor) holds an account with us and has approached us and at their request and in consideration of the promises, we hereby furnish such guarantees as mentioned hereinafter.

C-DAC shall be at liberty without reference to the Bank and without affecting the full liability of the Bank hereunder to take any other undertaking of security in respect of the bidders obligations and / or liabilities under or in connection with the said contract or to vary the terms vis-a – vis the bidder or the said contract or to grant time and or indulgence to the bidder or to reduce or to increase or otherwise vary the prices or the total contract value or to forebear from enforcement of all or any of the obligations of the bidder under the said contract and/or the remedies of C-DAC under any security now, or hereafter held by C-DAC and no such dealing(s) with the bidder or release or forbearance whatsoever shall have the effect of releasing the bank from its full liability of C-DAC hereunder or of prejudicing right of C-DAC against the bank.

This undertaking guarantee shall be a continuing undertaking guarantee and shall remain valid and irrevocable for all claims of C-DAC and liabilities of the supplier arising up to and until _____ (date)

This undertaking guarantee shall be in addition to any other undertaking or guarantee or security whatsoever the that C-DAC may now or at any time have in relation to its claims or the supplier's

obligations/liabilities under and / or in connection with the said contract and C-DAC shall have the full authority to take recourse to or enforce this undertaking guarantee in preference to the other undertaking or security (ies) at its sole discretion and no failure on the part of C-DAC in enforcing or requiring enforcement of any other undertaking or security shall have the effect of releasing the bank from its full liability hereunder.

We _____ (Name of Bank) hereby agree and irrevocably undertake and promise that if in your (C-DAC's) opinion any default is made by M/s _____ (Name of Vendor) in performing any of the terms and /or conditions of the agreement or if in your opinion they commit any breach of the contract or there is any demand by you against M/s _____ (Name of Vendor), then on notice to us by you, we shall on demand and without demur and without reference to M/s _____ (Name of Vendor), pay you, in any manner in which you may direct, the amount of Rs. _____/- (Rupees _____ Only) or such portion thereof as may be demanded by you not exceeding the said sum and as you may from time to time require. Our liability to pay is not dependent or conditional on your proceeding against M/s _____ (Name of Vendor) and we shall be liable & obligated to pay the aforesaid amount as and when demanded by you merely on an intimation being given by you and even before any legal proceedings, if any, are taken against M/s _____ (Name of Vendor)

The Bank hereby waives all rights at any time inconsistent with the terms of this undertaking guarantee and the obligations of the bank in terms hereof shall not be anywise affected or suspended by reason of any dispute or disputes having been raised by the supplier (whether or not pending before any arbitrator, Tribunal or Court) or any denial of liability by the supplier or any order or any order or communication whatsoever by the supplier stopping or preventing or purporting to stop or prevent payment by the Bank to C-DAC hereunder.

The amount stated in any notice of demand addressed by C-DAC to the Bank as claimed by C-DAC from the supplier or as suffered or incurred by C-DAC on the account of any losses or damages or costs, charges and/or expenses shall as between the Bank and C-DAC be conclusive of the amount so claimed or liable to be paid to C-DAC or suffered or incurred by C-DAC, as the case may be and payable by the Bank to C-DAC in terms hereof.

You (C-DAC's) shall full liberty without reference to us and without affecting this guarantee, postpone for any time or from time to time the exercise of any of the powers and rights conferred on you under the contact with the said M/s _____ (Name of Vendor) and to enforce or to forbear from endorsing any power or rights or by reason of time being given to the said M/s _____ (name of Vendor) which under law relating to the sureties would but for the provisions have the effect of releasing us.

You will have full liberty without reference to us and without affecting this guarantee, postpone for any time or from time to time the exercise of any of the powers and rights conferred on you under the contract with the said M/s _____ (Name of Vendor) and to enforce or to forbear from endorsing any power or rights or by reason of time being given to the said M/s _____ (Name of Vendor) which under law relating to the sureties would but for the provisions have the effect of releasing us.

Your right to recover the said sum of Rs. _____/- (Rupees _____ only) from us in manner aforesaid will not be affected/ or suspended by reason of the fact that any dispute or disputes have been raised by M/s _____ (Name of Vendor) and/ or that any dispute or disputes are pending before any officer, tribunal or court or Arbitrator.

The guarantee herein contained shall not be determined or affected by the liquidation or winding up, dissolution or change of constitution or insolvency of the said M/s _____ (Name of Vendor) but shall in all respects and for all purposes be binding and operative until payment of all dues to C-DAC in respect of such liability or liabilities.

Our liability under this guarantee is restricted to Rs._____/- (Rupees _____Only). Our guarantee shall remain in force until unless a suit action to enforce a claim under guarantee is filed against us within six months from (which is date of expiry of guarantee) all your rights under the said guarantee shall be forfeited and we shall be relieved and discharged from all liabilities there under.

We have power to issue this guarantee in your favour under Memorandum and Articles of Association of our Bank and the undersigned has full power to do under the power of Attorney dated.

Notwithstanding anything contained herein:

A. Our liability under this guarantee shall not exceed Rs_____ (in words)

B. This bank guarantee shall be valid up to _____ & unless a suit for action to enforce a claim under guarantee is filed against us within 1 year from the date of expiry of guarantee. All your rights under the said guarantee shall be forfeited and we shall be relieved and discharged from all liabilities there after i.e. after one year from the date of expiry of this Bank guarantee

C. We are liable to pay the guaranteed amount or any parts thereof under this bank guarantee only and only if you serve upon us a written claim or demand or before _____

D. The Bank guarantee will expire on (Min ……. months from the date of successful installations of the items in the order) _____

Granted by the

Bank

SEAL OF THE BANK

Yours faithfully,
For (Name of Bank)

Authorised Signatory

ANNEXURE E – UNDERTAKING - EMD

(ON COMPANY'S LETTERHEAD)

(Only applicable for Exempted Bidders – Please refer the EMD clause of this document)

Date:

To:
The Director General,
Centre for Development of Advanced Computing (C-DAC)
Innovation Park, Panchavati, Pashan Road,
Pune - 411008 Maharashtra, INDIA

Subject: Undertaking as per GFR – 2017, Rule 170(iii)

Dear Sir,

We, the undersigned, offer to Supply the ----------as per tender at C-DAC Pune, in response to your Tender No----------.

We are hereby submitting our proposal for same, which includes Technical bid and the Financial Bid. As a part of eligibility requirement stipulated in said tender document, we hereby submit a declaration in lieu of Earnest Money Deposit (EMD), as given below:

1. Our bid (including commercial bid) shall remain valid for 120-days from the date of submission and that we will not withdraw or modify our bid during the validity period,
2. In case, we are declared as successful bidder and an order is placed on us, we will submit the acceptance in writing within 7 days of placement of order on us.
3. In case, we are declared as successful bidder and an order is placed on us, we undertake, to submit a Security Deposit / Performance Bank Guarantee of 5% of the order value, as per terms stipulated in the tender.
4. In case of failure on our part to comply with any of the above said requirements, we are aware that we shall be declared as un-eligible for said tender and /or debarred from any future bidding process of C-DAC for a period of minimum one year.
5. We hereby certify that my/ our firm has not been disqualified and / or blacklisted by any Office/ Department/ Undertaking of the State Government / Central Govt. of India, PSU/ Autonomous Body of Government of India, at the time of submission of this bid.
6. The undersigned is authorized to sign this undertaking.

Yours sincerely,

Authorized Signatory:
Name and Title of Signatory:
e-mail:
Mobile No:

Annexure F – MII Declaration

(Please submit the certificate as per format given below)

To:
Director General,
Centre for Development of Advance Computing,Pune – 411008

We hereby certify that the goods & software being offered by us vide our proposal, comply with the Make In India Order No. P-45021/2/2017-PP(BE-II)-Part(4)Vol.II dated 19.07.2024 issued by Public Procurement Section, Department of Promotion of Industry and Internal Trade (DPIIT), Ministry of Commerce & Industry, GoI.

We hereby certify the details pertaining to goods offered by us, as given below:

Sr. No	Item Description, Make, Model	Countryof originof OEM	Country of Manufacturer eof item	Percentage of local content for the solution **	Location of Value Addition
1	Details/breakup of major components to be provided				

** Note 1: The local content percentage (%) is ..... s consolidated figure for the complete solution i.e. including all items mentioned above.

We abide by the following terms and conditions of this GeM bid / enquiry

1. CDAC reserves the right to Accept / Reject / Cancel the bid / GeM inquiry, at its sole discretion, based on the responses received against the MII declaration submitted by the bidders / vendors.
2. Any deviation in this format or not-covering all the major components as per the RFP ask may result in disqualification of the bidder. The BOM/BOQ details should exactly match with the item details provided herein.
3. We also certify that, we are not from a country sharing land border with India as defined in Order No.F.7/10/2021-PPD (1) (Public Procurement No. 4) dated 23.02.2023 issued by Procurement Policy Division, Department of Expenditure, Ministry of Finance, GOI and the goods offered by us comply with the provisions of said order.
4. We have gone through the above-mentioned OM / Order and we have verified the information given in the Make In India (MII) declaration submitted by us and it is true to our knowledge.

5. Select any one of the following options ***(Strike out / delete, the option which is not applicable in the declaration i.e. either a or b)***:
    a. We understand that the MII declaration is to be submitted duly certified by the Cost Auditor or Statutory Auditor (in the case of companies) OR from a practicing cost accountant or practicing chartered accountant (in respect of suppliers other

than companies). However as per the provision of the said MII Order /OM we are submitting the self-certification for local content for the offered goods / software / solution / services etc. by us. In case, we emerged as the lowest bidder against this tender, at the time of execution of the project, we shall be required to give local content certification duly certified by Cost / Chartered Accountant in practice (as applicable). Further, we agree that, in case, we do not meet the stipulated local content requirement and the category of the supplier changes from Class-I to Class-II / Non-local OR from Class-II to Non-local, a penalty of 10% of the contract value shall be imposed on us.

OR ELSE

b. We are submitting the MII Declaration duly certified by the Cost Auditor or Statutory Auditor (in the case of companies) OR from a practicing cost accountant or practicing chartered accountant (in respect of suppliers other than companies). The document certifying agency /firm/ company is: (Strike out the option which is not applicable in your the declaration)
    i. ***our Cost Auditor or Statutory Auditor (in the case of companies)***

    OR

    ii. ***a practicing cost account / chartered accountant (in case of suppliers other than companies)***

For (Name of bidder)

Authorized SignatoryName &
Designation: Mobile No:

Annexure G - CERTIFICATE/UNDERTAKING FROM BIDDER/ OEM

To: Director General,

C-DAC, Pune – 411008

Ref: Tender / Enquiry No. XXX dt. XXXX

We have read the clause mentioned in the Order No.F.7/10/2021-PPD (1) (Public Procurement No. 4) dated 23.02.2023 issued by Procurement Policy Division, Department of Expenditure, Ministry of Finance, GOI. and further Order/OMs regarding restrictions on procurement from a bidder of a country which shares a land border with India (if any).

In view of this, we certify that,

a. We are not from a country sharing land border with India and any registration as mentioned in said OM is not applicable to us.

OR

b. We are registered with the competent authority as mentioned in said OM. The copy of registration No.xxx dt.xxx is enclosed.

(Delete whatever is not applicable)

For (Name of Bidder)

Authorised Signatory

(Name & Signature)

(Company's Seal)

Annexure H - INTEGRITY PACT

(To be executed on stamp paper of appropriate denomination duly notarised and applicable for all tenders of value above Rs.1 Crore)

This Integrity Pact ("the Pact") is made and executed on this ____ Day of _____ Two Thousand Twenty _____ at _____.

By and Between

Centre for Development of Advanced Computing (C-DAC), an autonomous scientific Society under the Ministry of Electronics and Information Technology, Government of India, registered under the Societies Registration Act 1860 and the Bombay Public Trusts Act 1950, having its registered Office at Savitribai Phule Pune University Campus, Pune 411 007, hereinafter referred to as "C-DAC/Principal", which expression shall unless repugnant to the context or meaning thereof be deemed to mean and include its administrators, successors or assignees, as the case may be.
and

…….…… hereinafter referred to as "The Bidder(s)/Contractor(s)", which expression shall unless repugnant to the context or meaning thereof be deemed to mean and include its administrators, successors or assignees, as the case may be.

(The Principal and the Bidder (s)/Contractor(s) are collectively referred to as "the Parties".

Preamble

The Principal intends to award, under laid down organizational procedures, contract/s for ---------- ("the Contract"). The Principal values full compliance with all relevant laws and regulations, and the principles of economic use of resources, and of fairness and transparency in its relations with its Bidder/s and Contractor/s. The Principal intends to avoid all forms of corruption by following a system that is fair, transparent and free from any influence/prejudiced dealings prior to, during and subsequent to the currency of the contract to be entered into. The Principal also intends that Bidder/s and Contractor/s should abstain from bribing or indulging in any corrupt practices in order to secure the contract by providing assurance to them that their competitors will also abstain from bribing and other corrupt practices and the Bidder/s and Contractor/s shall commit to prevent corruption, in any form, by its officials by following transparent procedures.

In order to achieve these goals, the Principal, by way of this Integrity Pact ("the Pact") will appoint Independent External Monitor ("IEM") who will monitor the tender process and the execution of the Contract for compliance with the principles mentioned above.

The parties hereto hereby agree to enter into this Pact and agree as mentioned below.

Section 1
Commitments of the Principal

1) The Principal commits itself to take all measures necessary to prevent corruption and to observe the following:-

   a) No employee of the Principal, personally or through relatives or any other person, will in connection with the tender, or for the execution of the Contract, demand, promise or accept for himself/herself or any third person, any material or immaterial benefit or any other advantage from the bidder/s or contractor/s which he/she is not legally entitled to.

   b) The Principal will, during the tender process treat all Bidder/s and Contractor/s with equity and reason. The Principal will in particular, before and during the tender process, provide to all bidder/s and contractor/s the same information and will not provide to any bidder/s or contractor/s additional/confidential information through which the bidder/s and contractor/s could obtain an advantage in relation to the tender process or the contract execution.

   c) The Principal will exclude from the process all known prejudiced persons.

2) If the Principal obtains information on the conduct of any of its employees, which is a criminal offence under the relevant Anti-Corruption Laws of India, or if there be a substantive suspicion and the same is prima facie found to be correct in this regard, the Principal will inform its Vigilance Office and in addition can initiate disciplinary actions In such a case while such enquiry is being conducted by the Principal, the proceedings under the contract shall not be stalled.

Section 2
Commitments of the Bidder/ contractor

1) The Bidder / Contractor commits to take all measures necessary to prevent corrupt practices, unfair means and illegal activities. He commits himself to observe the following during his participation in the tender process and during the contract execution:

   a) The Bidder / Contractor undertakes that he/she has not given, offered or promised to give directly or indirectly any bribe, gift, consideration, reward, favour any material or immaterial benefit or other advantage, commission, fees, brokerage or inducement to any official of the Principal, for which benefit etc. he/she is not legally entitled to, in order to obtain in exchange any advantage of any kind whatsoever during the tender process or during the execution of the contract.

   b) The Bidder / Contractor will not, directly or through any other person or firm, offer, promise or give to any of the Principal's employees involved in the tender process or the execution of the contract or to any third person any bribe, gift, consideration, reward, favour, any material or immaterial benefit or other advantage, commission, fees, brokerage or inducement to any official of the Principal, for which benefit etc. he/she is not legally entitled to, in order to obtain in exchange any advantage of any kind whatsoever during the tender process or during the execution of the contract

   c) The Bidder / Contractor will not enter into any agreement or understanding with other Bidders in connection with the bid, including but not limited to prices, specifications, certifications, subsidiary contracts, submission or non-submission of bids or any other actions to restrict competitiveness or to introduce cartelisation in the bidding process.

d) The Bidder / Contractor will not commit any offence under the relevant provisions of Anti-Corruption Laws of India/Indian Penal Code, 1860, Information and Technology Act, 2000, Competition law or any other relevant laws, enactments, rules and regulations. Further the Bidder / Contractor will not use improperly, for purposes of competition or personal gain, or pass on to others, any information or document provided by the Principal as part of the business relationship, regarding plans, technical proposals and business details, including information contained or transmitted electronically. The Bidder / Contractor also undertakes to exercise due and adequate care of any such information so divulged.

e) The Bidder / Contractor further confirms and declares to the Principal that the Bidder / Contractor is the original manufacturer / integrator / authorised government sponsored export entity and has not engaged any individual or firm or company whether Indian or foreign to intercede, facilitate or in any way to recommend to the Principal or any of its functionaries, whether officially or unofficially to the award of the contract to the Bidder / Contractor, nor has any amount been paid, promised or intended to be paid to any such individual, firm or company in respect of any such intercession, facilitation or recommendation.

f) The Bidder / Contractor will, when presenting his bid, disclose any and all payments he has made, is committed to make or intends to make to agents, brokers or any other intermediaries in connection with the award of the contract and the details of the services agreed upon for such payments.

g) The bidder(s)/ contractor (s) of foreign origin shall disclose the name and address of agents and representatives in India related to this tender. Similarly, the bidder(s)/ contractor(s) of Indian nationality shall furnish the name and address of their foreign principals or associates, if any, related to this tender.

h) The Bidder / Contractor shall not accept any advantage in exchange for any corrupt practice, unfair means and illegal activities.

i) If the Bidder / Contractor or any employee of the Bidder / Contractor or any person acting on behalf of the Bidder / Contractor, either directly or indirectly, is a relative of any of the officers of the Principal, or alternatively, if any relative of an officer of the Principal has financial interest / stake in the Bidder's / Contractor's firm, proprietorship, company, etc. the same shall be disclosed by the Bidder / Contractor at the time of filing of tender/EoI. The term 'relative' for this purpose would be as defined in Section 6 of the Companies Act, 2013.

j) The Bidder / Contractor shall not lend to or borrow any money from or enter into any monetary dealings or transactions, directly or indirectly, with any employee of the Principal.

k) The bidder / contractor shall disclose the circumstances, arrangements, undertakings or relationships that constitute, or may reasonably be considered to constitute, an actual or potential conflict of interest with its obligations specified in the tender process or under any Agreement which may be negotiated or executed with Principal. Bidder / Contractor and its employees, agents, advisors and any other person associated with the bidder / contractor must not place themselves in a position which may, or does, give rise to conflict of interest (or a potential conflict of interest between the interests of Principal or any other interests during this tender process or through operation of the Agreement.

l) The bidder(s)/ contractor (s) who have signed the Pact shall not approach the Courts while the matters/disputes/issues, related to tender process or the Contract are presented before the IEM and awaiting the final decision.

2) The Bidder / Contractor will not instigate third persons to commit above mentioned acts / omissions / offences outlined above or be an accessory to such offences.

Section 3
Disqualification from tender process and exclusion from future contracts

1) If the Bidder, before the Contract is awarded, has committed a transgression through a violation of Section 2 or in any other form such as to put his reliability or credibility as Bidder into question:

   a) the Principal is entitled to disqualify the Bidder from the tender process or to terminate the Contract, if already signed, for such reason.

   b) the Principal is entitled to exclude the Bidder / Contractor from participating in future contracts/tenders. The imposition and duration of the exclusion will be determined by the Principal based on the severity of the transgression. The severity will be determined by the circumstances of the case, in particular the number of transgressions, the position of the transgressors within the company hierarchy of the Bidder / Contractor and the amount of the damage. The exclusion will be imposed for a minimum of six (6) months and maximum of three (3) years.

2) An act/omission would be treated as a transgression after due consideration of the available evidence by the Principal.

3) The Bidder / Contractor accepts and undertakes to respect and uphold the Principal's absolute right to resort to and impose such disqualification/exclusion and further accepts and undertakes not to challenge or question such exclusion on any ground, including the lack of any hearing before the decision of disqualification/exclusion is taken. This undertaking is given freely and after obtaining independent legal advice.

4) If the Bidder / Contractor can prove that he has restored the damage caused by him and has installed a suitable corruption prevention system, the Principal may revoke the aforesaid disqualification/exclusion prematurely.

Section 4
Compensation for Damages

1) Without prejudice to any rights that may be available to the Principal under any law or the contract or its laid down policies and procedures, the Principal shall have the following rights in case of breach of this Pact by the Bidder/Contractor:

   a) To forfeit the Earnest Money/Bid Security if the Bidder is disqualified from the tender process prior to the award in terms of Section 3;

b) To forfeit/invoke the Security Deposit/ Performance Bank Guarantee if the Principal has either terminated or is entitled to terminate the Contract of the Bidder in terms of Section 3.

c) To immediately call of the pre contract negotiations without assigning any reason or giving any compensation to the Bidder / Contractor.

d) To immediately cancel the contract, if already signed, without giving any compensation to the bidder / contractor. The Bidder / Contractor shall be liable to pay the compensation for any loss or damage to the Principal resulting from such cancellation / rescission and the Principal shall be entitled to deduct the amount so payable from the amount due to the Bidder / Contractor.

e) To recover all sums already paid by the Principal, with interest at __% @ p.a. if any outstanding payment is due to the Bidder / Contractor from the Principal in connection with any other contract, such outstanding payment could also be set off to recover the aforesaid sum and interest.

f) To recover all sums paid in violation of this Pact by the Bidder / Contractor to any middleman or agent or broker with a view to securing the contract.

Section 5
Previous transgression

1) The Bidder declares that he has not committed any transgressions in the last three (3) years against any Company in any country conforming to the anti-corruption approach or with any other Public Sector Enterprise in India that could invite/justify his exclusion from this tender process.

2) Any concealment of information or misrepresentation of facts, in regard to the aforesaid, can lead to his disqualification from the tender process or termination of the Contract, if already awarded, or invite any other appropriate action(s) as deemed fit.

Section 6
Equal treatment of all Bidders / Contractors / Subcontractors

1) The Principal will enter into Pacts on identical terms with all bidders and contractors.

2) The Bidder(s) / Contractor(s) assures to procure from all their subcontractors an undertaking for the adoption of this Pact. The Bidder (s) / Contractor(s) shall alone be responsible for any violation (s) of the provisions laid down in the Pact by any/all of their sub-contractor (s) or sub-vendor (s).

3) The Principal will be entitled to disqualify from the tender process all bidders who do not sign this Pact or violate its provisions.

Section 7
Independent External Monitor / Monitors

1) The Principal appoints competent and credible Independent External Monitor as nominated and approved by the Central Vigilance Commission. The task of the IEM is to review independently and objectively, whether and to what extent the Parties comply with the obligations under this Pact. The IEM would be required to sign 'Non- Disclosure Agreements' alongwith a declaration of 'Absence of Conflict of Interest'. In case of any conflict of interest arises at a later date, the IEM shall inform Chairperson of the Board of the Principal and recuse himself/herself from that case.

2) The IEM is not subject to instructions by the representatives of the parties and performs his functions neutrally and independently. He reports to the Chairperson of the Board of the Principal. The IEM would be provided access to all documents/records pertaining to the contract for which a complaint or issue is raised before them, as and when warranted. However, the documents/records/ information having National Security implications and those documents which have been classified as Secret/Top Secret are not to be disclosed.

3) The Bidder / Contractor accepts that the IEM has the right to access, without restriction, all Project documentation available with the Principal including the documents/ records/ information provided by the Bidder/Contractor. The Bidder/Contractor will also grant the IEM, upon their request and demonstration of a valid interest, unrestricted and unconditional access to his project documentation. The same is applicable to Subcontractors. The IEM is under contractual obligation to treat the documents/ records/ information of the Bidder/Contractor/ Subcontractor with confidentiality.

4) The Principal will provide to the IEM sufficient information about all meetings among the parties related to the Project provided that such meetings could have an impact on the contractual relations between the Principal and the Bidder/Contractor. The Parties will offer to the IEM the option to participate in such meetings.

5) As soon as the IEM notices, or suspects, a violation of this Pact, he will inform the Management of the Principal and request the Management to discontinue or rectify the violation, or take any other relevant action. The IEM can in this regard submit nonbinding recommendations. Beyond this, the IEM has no right to demand from the Parties that they act in a specific manner, refrain from action or tolerate action. However, the IEM shall give an opportunity to the Bidder / Contractor to present his case before making its recommendations to the Principal.

6) The IEM is expected to tender their recommendation on all the complaints within 30 days of their receipt, to the Chairperson of the Board of the Principal. Further, should the occasion arise, the IEM may submit proposals for correcting problematic situations.

7) If the IEM has reported to the Chairperson of the Board of the Principal a substantiated suspicion of an offence under relevant Anti-Corruption Laws of India/Indian Penal Code, 1860, or any other relevant laws and the Chairperson has not, within reasonable time, taken visible action to proceed against such offence or reported it to the Vigilance Office, the IEM may transmit this information directly to the Central Vigilance Commissioner, Government of India.

8) The word 'IEM' would include both singular and plural.

Section 8
Pact Duration

1) This Pact comes into force when both parties have signed it. It expires for the Bidder / Contractor 12 months after the last payment under the respective contract, and for all other Bidders / Contractors 6 months after the contract has been awarded.

2) If any claim is made / lodged during the aforesaid duration, the same shall continue to be valid despite the lapse of this pact as specified above, till it is discharged / determined by Chairperson of the Board of the Principal.

Section 09
Other provisions

1) This Pact is subject to Indian Laws. Place of performance and jurisdiction is the Registered Office of the Principal, i.e. Pune. The Arbitration clause provided in the main tender document / contract shall be applicable to any issue / dispute arising under this Pact.

2) If the Contractor is a partnership or a consortium, this Pact must be signed by all partners or consortium members.

3) In case of any allegation of violation of any provisions of this Pact or payment of commission etc. the Principal or its agencies shall be entitled to examine all the documents including the Books of Accounts of the Bidder / Contractor and Bidder / Contractor shall provide necessary information and documents and shall extend all possible help for the purpose of such examination.

4) If one or several provisions of this Pact are held to be invalid/unenforceable, the remainder of this Pact shall remain valid as though the invalid or unenforceable parts had not been included herein. In this case, the parties will strive to come to an agreement to their original intentions.

5) Issues like warranty/ guarantee etc. shall be outside the purview of IEM.

---------- ----------

For the Principal For the Bidder / Contractor

Place ---------- Witness 1 : ----------

Date ---------- Witness 2: ----------

ANNEXURE I – DOCUMENTS LIST / INDEX

Sr	Description	Page No (s)
1	Covering letter, as per **Annexure – A.**	
2	Authority letter, as per **Annexure – B.**	
3	The undertakings from the Principal Manufacturers (OEMs) of products/ items offered as per **Annexure – C.**	
4	**Annexure-E** – Declaration in lieu of EMD	
5	**Annexure – F – Mandatory Declaration (M.I.I – O.M.s)**	
6	**Annexure – G – Mandatory Declaration (Land Border Sharing – O.M.s)**	
7.	**Annexure – H – Integrity Pact**	
7	A copy of Certificate of Incorporation, Partnership Deed / Memorandum and Articles of Association / any other equivalent document showing date and place of incorporation, as applicable, in support of eligibility criteria.	
8	Copy of GST registration certificates.	
9	The detailed technical catalogues, specifications for the offered Items as per format given in **Section – III**	
10	Compliance statement indicating the compliance of the items, equipment, solution offered with the tender specifications	
11	POST AMC charges declaration	
12	The bidder must submit all the documents as per Document Checklist – **Annexure I**, with appropriate page nos for the same. The flow of the submitted documents must be in the same order.	
13	The certificate from a Chartered Accountant certifying the average annual sales turnover of the bidder for the last 3 financial years.	
14	Other documents necessary in support of eligibility criteria, product catalogues, brochures etc.	
15	The bidder must not be blacklisted by any Govt. Organizations as on date of submission of the bids. A certificate or undertaking to this effect must be submitted **(Annexure – A).**	
16	The bidder should provide sufficient documentary evidence to support the eligibility criteria and exemptions mentioned in the Document.	

(END OF DOCUMENT)

Annexure-A

(Responses to queries/Clarification)

"SUPPLY, INSTALLATION, INTEGRATION, TESTING & COMMISSIONING (SIITC) OF HPC-AI High Performance Storage and Archival Solution"

(Reference Bid No: GeM Ref. GEM/2025/B/6979425)

SI.No.	Section / Page No.	Clause reference	Query / Amendment requested	C-DAC Response
1.	Section IV - 2.PFS BASED STORAGE - Page No.12	Section IV/ 2.PFS BASED STORAGE/ Sr.1-Primary Storage (Scratch/Home Space):	Query1: Topic reference: Backup vs Archive Coverage Please clarify the portion (in PiB or %) of the 11 PiB PFS capacity that requires backup, archive, or both. Query2: Please clarify whether scratch data requires backup/archive, and whether home/project data must always be protected.	As per RFP

SI.No.	Section / Page No.	Clause reference	Query / Amendment requested	C-DAC Response
2.	Section IV – 4. ASSOCIATED BACKUP SOFTWARE & SERVERS - Pa Section IV – 3.Tape Library- Page No.16ge No.23	Section IV/ 4. ASSOCIATED BACKUP SOFTWARE & SERVERS/ Sr.16 - Backup targets and sizing	Query1: Topic reference: Disk-based Backup Retention Please specify the retention duration for backups on disk/object storage before aging to tape. Below is an example of GFS policies and Retention, CDAC may select other approaches sutiable for the deployement Daily Backup - Retention 7 Days Weekly Full Backup - Retention 4 Weeks Monthly Full Backup - Retention 3 Months Yearly Full Backup - Retention 3 Years Query2: Topic reference: Role of Object Storage Please clarify whether S3-compatible object storage is intended as primary backup, secondary copy, archive staging, or for specific workloads. Query3: Topic reference: Other Data Types Please confirm whether backup/archive is required for VM data, unified storage volumes, object storage buckets, or other data types. Query4: CDAC shall arrange all H/w, s/w & Licenses as well as configuration, Integration, testing and comissioning services etc required on existing Tyrone Object storage and Tyrone Unified Storage w/o any cost to Bidder. Query5: What is the exact source environment or capacity to be considered for Backup ? Query6 We want to understand type of data on Tyrone Opslag erta D4ZC-24D Unified storage structured or unstructured and can be accessed via NFS.	Refer Corrigendum

3.	Section IV – 3.Tape Library- Page No.16	Section IV /3.Tape Library/Sr.4 - Functionality	Query1: Topic reference: Archive Retention Period Please specify the archive (LTR) retention duration on tape (number of years). Also please clarify if you like to have a stub to retrieve files automatically while archiving to disk. Query2: Topic reference: Archive Data Growth Please provide expected annual growth rate of data to be archived to tape (TB/PB per year). This shall be considered to size Server (Compute) and Backup Target Storage/Tape and model the sizing for number of years. Query3: Topic reference: Archive Trigger Criteria Please clarify criteria for moving data to archive (file age, last access, project completion, manual selection) and frequency. Please note Backup and Archive are different and work differently. Hence we please provide how frequently and on what criteria files shall be moved.	As per RFP

SI.No.	Section / Page No.	Clause reference	Query / Amendment requested	C-DAC Response
4.	Section IV - 2.PFS BASED STORAGE - Page No. 13	Section IV/2.PFS BASED STORAGE/sr. 4 PFS Metadata:	Query1: Topic refernece : File Count Under Protection Please provide estimated number of files expected to be protected under backup and archive.	As per RFP
5.	Section IV – 4. ASSOCIATED BACKUP SOFTWARE & SERVERS - Page No.23	Section IV – 4/ASSOCIATED BACKUP SOFTWARE & SERVERS/Sr. 7 Archiving Features	Query1: Topic reference: Backup Copy Count Please clarify number of backup copies required on disk prior to archiving to tape.	As per RFP
6.	Section IV , Associated Backup Software & & SERVERS - Page No.20	Section IV – 4/ASSOCIATED BACKUP SOFTWARE & SERVERS/Sr.5 Access Control List (ACL) Preservation even Cross-platform	Query1: Topic reference: Archive Format on Tape (TAR / LTFS) , requirement that solution benefits from TAR and LTFS formats on tape The RFP states that the solution should , benefit from the widely used Tape Archive file format (TAR) and Linear Tape File System (LTFS) format on Tape., Kindly clarify whether the intent is that archived data written to tape must be stored in an open, standard format (such as TAR over LTFS) that is directly readable on LTFS-compliant systems, or whether it is acceptable for the backup software to write data in its own proprietary format.	Refer Corrigendum

SI.No.	Section / Page No.	Clause reference	Query / Amendment requested	C-DAC Response
7.	Section II – INSTRUCTION TO BIDDERS- 4. ELIGIBILITY CRITERIA- Page No.3	Section II – INSTRUCTION TO BIDDERS- 4. ELIGIBILITY CRITERIA- Clause Y.	Query1: Tape Library OEM/ Authorized partners must have registered sales & service support center / office in India for more than 5 years; documentary proof must be submitted.	Refer Corrigendum
8.	Section II – INSTRUCTION TO BIDDERS- 4. ELIGIBILITY CRITERIA- Page No.4	Section II – INSTRUCTION TO BIDDERS- 4. ELIGIBILITY CRITERIA- Clause Z.	Query1: Tape Library OEM /Authorized partners should have spare parts warehouse located in the Pune Metropolitan Area (PMR) or Mumbai Metropolitan Area (MMR)	Refer Corrigendum
9.	Section IV – Financial Breakup - BOQ . Page No.25	SECTION IV: Financial Breakup - BOQ , Item No. 1,2,3,4,5	Query1: Delivery 45 days . Tape Library is not manufactured in India so it will require more than 45 days kindly extend delivery to 75 days	Refer Corrigendum
10.	Section IV – 3.Tape Library- Page No.16	Section IV /3.Tape Library/Sr.1 - Tape Library	**Query1:** Tape Library of min. 10PB Native capacity expandable to 14 PB - Qty-01. Max. 42U. The tape library should be a single chassis with further scope for expansion. Therequired chassis / rack to be provided by bidder. **Query2:** We understood that standard 19" Server Rack is asked here, not the frame based library Suggestion : Please add 16PB Native and expandable to 20PB scalability for better archival storage management	Refer Corrigendum

SI.No.	Section / Page No.	Clause reference	Query / Amendment requested	C-DAC Response
11.	Section IV – 3.Tape Library- Page No.16	Section IV /3. Tape Library/Sr.2 - Form Factor, Slot Capacity and Scalability	**Query1:** The offered tape library must be a standalone single-frame form factor with a minimum of 350 slots, scalable to 470 or more slots as required by C-DAC. **Query2:** Please clarify whether its an standard 19" Server Rack is asked here, not the frame based library (Frame based library comes with its own rack with different architecture compare to what has been asked in this RFP) Suggestion: Please add scalability to 550 slots or more	Refer Corrigendum
12.	Section IV – 3. Tape Library- Page No.16	Section IV /3. Tape Library/Sr.3 - Tape Cartridges and Labels	**Query1:** It shall support fail-over connectivity for robotics **Query2:** Please clarify. Do we need dual robotic arm?	As per RFP
13.	Section IV – 3.Tape Library- Page No.18	Section IV/3.Tape Library/Sr.8 - Media Compatibility	**Query1:** Offered Tape Library shall support multiple Brands Media cartridges, there should not be any vendor locking to read, write and supporting specific OEMs of Media **Query2:** Suggestion: please add "Tape Library should support different capacity available in LTO-10 Media in future"	Refer Corrigendum

SI.No.	Section / Page No.	Clause reference	Query / Amendment requested	C-DAC Response
14.	Section IV – 3.Tape Library- Page No.18	Section IV /3.Tape Library/Sr. 9- Capacity and Future Expansion	**Query1:** The proposed tape library must be able to support future tape drive technology without changing the tape library, it shall scale up to 16 LTO-10 drives. **Query2:** Suggestion : The proposed tape library must be able to support future tape drive technology without changing the tape library, it shall scale up to 21 LTO-10 drives.	Refer Corrigendum
15.	Section IV – 3.Tape Library- Page No.18	Section IV /3.Tape Library/Sr. 12- Vaulting	**Query1:** Proposed Library should support in-Library Vaulting functionality which avoid and eliminate the need of physically handpick the media manually. Vaulting shall be supported within library and make the media offline even if they are kept in the library **Query2:** This point is vendor specific please change it.	Refer Corrigendum

SI.No.	Section / Page No.	Clause reference	Query / Amendment requested	C-DAC Response
16.	Section IV – 3.Tape Library- Page No.19	Section IV /3.Tape Library/Sr.14-System Endurance	**Query1:** 1. The MSBF of the proposed tape library should be at least 2,000,000 2. The Mean Time to Repair (MTTR) of the proposed tape library should be 30 minutes. **Query2:** Recommended : 3 minutes for hot-swap components. 10 minutes for non-hot-swap components Mean Cycles Between Failures (MCBF) : 3 million Mean Time Between Failures (MTBF): 250,000 power-on hours	As per RFP

SI.No.	Section / Page No.	Clause reference	Query / Amendment requested	C-DAC Response
17.	Section II – INSTRUCTION TO BIDDERS.- 4. ELIGIBILITY CRITERIA - Page No.3	Section II/INSTRUCTION TO BIDDERS/ 4. ELIGIBILITY CRITERIA - Point k	**Query1:** Kindly alllow bidder /OEM having PO of 5PB in state /central/PSUor any state organization of 5PBin last five year **Query2:** This clause needs to be updated as "k. The bidder or OEM must have supplied and installed successfully at least two orders of Tape based Archival Storage to any Central/State Government Organization, PSU, or any other government organization in India; having a usable capacity of a minimum of each 2PB in the last five years. Copies of contracts / work orders and documentary evidence/ proof of successful execution (signed acceptance report by end user, P.O. copy) must be submitted along with the bid." **Query3:** Instead of "The bidder and OEM" pls make as "The bidder Or OEM" **Query4:** Now days most of the customers are opting for the disk based back up. Therefore, we do not have many customers opting for such type of large capacity Tape Library. We request you to kindly change the clause as Bidder / OEM should have supplied such Tape Library **Query5:** Our request to CDAC, please ammend the clause as below "The bidder and OEM must have supplied and installed successfully at least two orders of Tape based Archival Storage to any Central/State Government Organization, PSU, or any other government organization in India; having a usable capacity of a minimum of each 1PB in the last ten years. Copies of contracts / work orders and documentary evidence/ proof of successful	Refer Corrigendum

SI.No.	Section / Page No.	Clause reference	Query / Amendment requested	C-DAC Response
			execution (signed acceptance report by end user, P.O. copy) must be submitted along with the bid."	
18.	Section II – INSTRUCTION TO BIDDERS.-4. ELIGIBILITY CRITERIA - Page No.3	Section II/INSTRUCTION TO BIDDERS/4. ELIGIBILITY CRITERIA- point h	**Query1:** This clause needs to be updated as "h. Bidder **or OEM** should have well established Installation, Commissioning, Training, Troubleshooting and Maintenance Service Centre in Pune for attending the after sales service. Details of Service Centers near consignee destinations are to be uploaded along with the bid."	Refer Corrigendum
19.	Section II – INSTRUCTION TO BIDDERS. -4. ELIGIBILITY CRITERIA - Page No.3	Section II/INSTRUCTION TO BIDDERS/4. ELIGIBILITY CRITERIA- point j	**Query1:** This clause needs to be updated as "j. The bidder **or** OEM must have supplied and installed successfully at least, two orders of PFS based HPC-AI Storage to any Central/State Government Organization, PSU, or any other government organization in India; having a usable capacity of a minimum of **each 2PB** in the last five years. Copies of contracts / work orders and documentary evidence/ proof of successful execution (signed acceptance report by end user, P.O. copy) must be submitted along with the bid."	Refer Corrigendum

SI.No.	Section / Page No.	Clause reference	Query / Amendment requested	C-DAC Response
			Query2: Instead of "The bidder and OEM" pls make as "The bidder Or OEM" **Query3:** Our request to CDAC, please ammend the clause as below- "The bidder and OEM must have supplied and installed successfully PFS based HPC / HPC-AI Storage to any Central/State Government Organization, PSU, or any other government organization in India; at least two orders of having a usable capacity of a minimum of each 5PB or at least one order of having a usable capacity of a minimum of each 10PB in the last ten years. Copies of contracts / work orders and documentary evidence/ proof of successful execution (signed acceptance report by end user, P.O. copy) must be submitted along with the bid."	
20.	Section II – INSTRUCTION TO BIDDERS-8. BID SECURITY / EARNEST MONEY DEPOSIT (EMD)-Page No.6	Section II – INSTRUCTION TO BIDDERS-8. BID SECURITY / EARNEST MONEY DEPOSIT (EMD)-Point a.	**Query1:** EMD of INR 80,00,000/- weighs to high for any bidder; we request here to kindly have relook at EMD amount and reduce the value of EMD, so that there would be larger participation from bidders **Query2:** We would like to seriously bid for this tender. But such a large amount of EMD may prevent us from bidding. To increase the bidders' participation in this tender, we request you to reduce the EMD amount.	As per RFP

SI.No.	Section / Page No.	Clause reference	Query / Amendment requested	C-DAC Response
21.	Section II – INSTRUCTION TO BIDDERS-2.EXECUTION & DELIVERY PERIOD-Page No. 3	Section II – INSTRUCTION TO BIDDERS-2.EXECUTION & DELIVERY PERIOD-Point a & Point b	**Query1:** As per our discussions with OEM delivery period is too short looking at current contraints on global component delivery schedules; we request to increase the delivery to 70 days and then installation in next 30 days to be allowed seperately **Query2:** Delivery period should be extended to 75 days **Query3:** RFP asks for 45 days while we request to kindly allow 75 days for the delivery and installation together **Query4:** Our request to CDAC, please ammend the clause as below- "HPC-AI High Performance Storage and Archival Solution along with all necessary components, accessories, hardware etc. must be supplied within 75 Days from the Date of award of contract. b. The execution of installation, testing, commissioning and acceptance shall be completed within 45 Days post-delivery."	Refer corrigendum

22.	Section IV – 4. ASSOCIATED BACKUP SOFTWARE & SERVERS - Page No.20	Section IV – 4/ASSOCIATED BACKUP SOFTWARE & SERVERS	**Query1:** Please help with Backup Window for the First Full Backup and Daily Incremental Backup **Query2:** Please help with the existing Backup infrastructure details, i.e., Backup Software being used and target repository / appliance **Query3:** Is the given Media Server Sizing tentative or can be modified **Query4:** Asked Archival capabilities are for Production Data Archival or Backup Data Archival ? **Query5:** We need to quote only the given vendor mentioned in Backup Target and Sizing or can have different vendor ? As this pointing towards a named RFP **Query6:** What is the Backup Frequency and associated retention of the same ? **Query7:** What is the per day Backup Window ? **Query8:** How much is the Daily % Change Rate or Daily Data to be backed up ? Is the given 100 TB is the Daily Backup Data?	As per RFP

SI.No.	Section / Page No.	Clause reference	Query / Amendment requested	C-DAC Response
23.	Section III-SPECIAL CONDITIONS OF CONTRACT-5.- Page No. 9	Section III-SPECIAL CONDITIONS OF CONTRACT-5.- 5. WARRANTY: All items supplied shall include 3 (Five) years onsite comprehensive warranty with NBD support.	**Query1:** Please clarify its, Five or Three	Refer Corrigendum

Annexure-B

“SUPPLY, INSTALLATION, INTEGRATION, TESTING & COMMISSIONING (SIITC) OF HPC-AI High Performance Storage and Archival Solution”

(Reference Bid No: GeM Ref. GEM/2025/B/6979425)

Sl. No.	Section / Page No.	Clause reference	Changed To
1.	Section IV – 4. ASSOCIATED BACKUP SOFTWARE & SERVERS - Page No.23	Section IV/ 4. ASSOCIATED BACKUP SOFTWARE & SERVERS/ Sr.16 - Backup targets and sizing	16. Backup sources and sizing 1. 10 PB NL-SAS tiers of the proposed HPC and AI high performance storage delivered over HDR 200 2. Tyrone FluidIO ObjectStorage : S3 compliant 2PB storage Object storage delivered over 100G ethernet 3. Tyrone Opslag Verta D4ZC-24D: Unified storage used for VM store and size of Unified storage is 3PB. It is delivered over 100G ethernet. 4. All necessary Media Agents and associated capacity-based licenses must be provided in unlimited quantities.
2.	Section IV , Associated Backup Software & & SERVERS - Page No.20	Section IV – 4/ASSOCIATED BACKUP SOFTWARE & SERVERS/Sr.5 Access Control List (ACL) Preservation even Cross-platform	Point 2 is deleted

Sl. No.	Section / Page No.	Clause reference	Changed To
3.	Section II – INSTRUCTION TO BIDDERS- 4. ELIGIBILITY CRITERIA- Page No.3	Section II – INSTRUCTION TO BIDDERS- 4. ELIGIBILITY CRITERIA- Clause Y.	Y. Tape Library OEM/ Authorized partners must have registered sales & service support center / office in India for more than 5 years; documentary proof must be submitted.
4.	Section II – INSTRUCTION TO BIDDERS- 4. ELIGIBILITY CRITERIA- Page No.4	Section II – INSTRUCTION TO BIDDERS- 4. ELIGIBILITY CRITERIA- Clause Z.	Z. Tape Library OEM /Authorized partners should have spare parts warehouse located in the Pune Metropolitan Area (PMR) or Mumbai Metropolitan Area (MMR)
5.	Section IV – 3.Tape Library- Page No.16	Section IV /3.Tape Library/Sr.1 - Tape Library	Sr.1. Tape Library Tape Library of min. 10PB Native capacity with 350 slots to be provided. The tape library should be provided with frame/rack as required.
6.	Section IV – 3.Tape Library- Page No.LTFS16	Section IV /3. Tape Library/Sr.2 - Form Factor, Slot Capacity and Scalability	Sr.2 - Clause is deleted
7.	Section IV – 3.Tape Library- Page No.18	Section IV/3.Tape Library/Sr.8 - Media Compatibility	Sr.8 - Media Compatibility clause is deleted
8.			Sr. 9-Capacity and Future Expansion clause is deleted

Sl. No.	Section / Page No.	Clause reference	Changed To
	Section IV – 3.Tape Library- Page No.18	Section IV /3.Tape Library/Sr. 9-Capacity and Future Expansion	
9.	Section IV – 3.Tape Library- Page No.18	Section IV /3. Tape Library/Sr. 12-Vaulting	Sr. 12-Vaulting clause is deleted
10.	Section II – INSTRUCTION TO BIDDERS.-4. ELIGIBILITY CRITERIA - Page No.3	Section II/INSTRUCTION TO BIDDERS/ 4. ELIGIBILITY CRITERIA - Point k	k. The bidder/ OEM must have supplied and installed successfully at least two orders of Tape based Archival Storage to any Central/State Government Organization, PSU, or any other government organization in India; having a usable capacity of a minimum of each 1PB in the last five years. Copies of contracts / work orders and documentary evidence/ proof of successful execution (signed acceptance report by end user, P.O. copy) must be submitted along with the bid.
11.	Section II – INSTRUCTION TO BIDDERS.-4. ELIGIBILITY CRITERIA -Page No.3	Section II/INSTRUCTION TO BIDDERS/4. ELIGIBILITY CRITERIA-point h	h. Bidder/OEM should have well established Installation, Commissioning, Training, Troubleshooting and Maintenance Service Centre in Pune for attending the after sales service. Details of Service Centers near consignee destinations are to be uploaded along with the bid.
12.	Section II – INSTRUCTION TO BIDDERS.-4. ELIGIBILITY CRITERIA -Page No.3	Section II/INSTRUCTION TO BIDDERS/4. ELIGIBILITY CRITERIA-point j	j. The Bidder / OEM must have supplied and installed successfully at least two orders of PFS based HPC-AI Storage to any Central/State Government Organization, PSU, or any other government organization in India; having a usable capacity of a minimum of each 5PB in the last five years. Copies of contracts / work orders and documentary evidence/ proof of successful execution (signed acceptance report by end user, P.O. copy) must be submitted along with the bid.
13.	Section II – INSTRUCTION TO BIDDERS-2.EXECUTION & DELIVERY PERIOD-Page No. 3	Section II – INSTRUCTION TO BIDDERS-2.EXECUTION & DELIVERY PERIOD-Point a & Point b	a. HPC-AI High Performance Storage and Archival Solution along with all necessary components, accessories, hardware etc. must be supplied and installed within 60 Days from the Date of award of contract. b. Clause is deleted

Sl. No.	Section / Page No.	Clause reference	Changed To
14.	Section III-SPECIAL CONDITIONS OF CONTRACT-5.-Page No. 9	Section III-SPECIAL CONDITIONS OF CONTRACT-5.- 5. WARRANTY: All items supplied shall include 3 (Five) years onsite comprehensive warranty with NBD support.	The warranty period mentioned in Clause No. 5 (Warranty) in the line "All items supplied shall include 3 (Five) years onsite comprehensive warranty with NBD support" contains a typographical error. The term "3 (Five) years" shall be read as **"3 (Three) years"** only. All other terms, conditions, clauses, and specifications of Clause No. 5 (Warranty) remain unchanged and valid.